GOVERNMENT OF MADHYA PRDESH/X

GWALIOR MUNICIPAL CORPORATIN DEPARTMENT

APPENDIX 2.10

TENDER DOCUMENT

For Percentage Rate only in works departments and other

Departments similar to work departments

(Effective from 01/01/2014)

OFFICE OF THE COMMISSIONER MUNICIPAL CORPORATION GWALIOR

NIT Number and Date	:	**MPGMC/91/23x3/5/Jankarya/2025-26**
Agreements Number and Date	:	**dt. 19.09.25**
Name of Work	:	**Construction of B.T. Road and C.C. Drain work at Arpit Medical Store to Ewerald Public School and Different Street in Surya Vihar Colony Ward No. 19 Zone No.08. File No. 91/23X3/5.3rd Call.**
Name of the Contractor	:	
Probable Amount of Contract		
(Rs. In Figure)	:	**70.00.796/-**
(Rs. In Words)	:	
Contract Amount		
(Rs. In Figure)	:	
(Rs. In Words)	:	
Stipulated Period of Completion	:	**120 Days i/c rainy Season**

APPENDIX 2.10

TENDER DOCUMENT

Table of Contents

Section No.	Particulars	Page
Section 1	NIT	4 to 6
Section 2	Instruction to Bidder (ITB)	7 to 14
	Bid Data Sheet	15 to 17
	Annexure A to M	18 to 48
Section 3	Table Clauses	49
	Part – I General Condition of Contract (GCC)	50 to 70
	Contract Data	71 to 73
	Annexure N to W	74 to 90
	Part – II Special Condition of Contract (GCC)	91
Section 4	Bill of Quantity (BOQ)	92
Section 5	Agreement Form	93 to 94
-	Other Special Conditions	

SECTION – 1

Notice Inviting Tender

GOVERNMENT OF MADHYA PRDESH

URBAN ADMISTRATATION AND DEVOLPMENT DEPARTMENT

OFFICE OF THE COMMISSIONER MUNICIPAL CORPORATION GWALIOR

No. – MPGMC/91/23x3/5/Jankarya/2025-26 **Dated – 19-09-2025**

Contractor have to submit Attested Scanned copy of PWD registration, Scanned copy of EPF registration, GSTIN NO., pan no., 'Annexure H' And 'Annexure B'(Non Judicial Stamp Rs. 100) Online tender through e-procurement are invited on portal **http://www.mptenders.gov.in** on behalf of GMC.

Online percentage rate bids for the following works are invited from registered contractors and Firms of repute fulfilling registration criteria :

S. No. /Pkg/ Code	Name of Work	District (s)	Probable Amount of Contract (Rs. in lakh)	Period of Completion
1	**Construction of B.T. Road and C.C. Drain work at Arpit Medical Store to Ewerald Public School and Different Street in Surya Vihar Colony Ward No. 19 Zone No.08. File No. 91/23X3/5.3rd Call.**	**GWALIOR**	**Rs 70,00,796/-**	**120 Days i/c rainy Season**

1. Interested bidders can view the detailed NIT in the website http://mptenders.gov.in.
2. The Bid Document can be purchased only online from **20/09/2025 10.30 to 03/10/2025 17.30.**
3. Amendments to NIT, if any, would be published on website only, and not in newspaper.

Commissioner
GWALIOR MUNICIPAL CORPORATIO

SECTION – 1

Notice Inviting Tender

GOVERNMENT OF MADHYA PRDESH

URBAN ADMISTRATATION AND DEVOLPMENT DEPARTMENT

OFFICE OF THE COMMISSIONER MUNICIPAL CORPORATION GWALIOR

No. – MPGMC/91/23x3/5/Jankarya/2025-26 **Dated: - 19-09-2025**

Contractor have to submit Attested Scanned copy of PWD registration, Scanned copy of EPF registration, GSTIN NO., pan no., 'Annexure H' And 'Annexure B' Online tender through e-procurement are invited on portal **http://www.mptenders.gov.in** on behalf of GMC.

Online percentage rate bids for the following works are invited from registered contractors and Firms of repute fulfilling registration criteria :

S. No. /Pkg/ Code	Name of Work	District (s)	Probable Amount of Contract (Rs. in lakh)	Earnest Money Deposit (In Rupees)	Cost of Bid Document	Category of Contractor	Period of Completion
1	2		3	4	5	6	7
1	**Construction of B.T. Road and C.C. Drain work at Arpit Medical Store to Ewerald Public School and Different Street in Surya Vihar Colony Ward No. 19 Zone No.08. File No. 91/23X3/5.3rd Call.**	**GWALIOR**	**Rs 70,00,796/-**	**52,506/-**	**10,000/-**	**Centralized PWD Registration**	**120 Days i/c rainy Season**

1. All details relating to the Bid Document(s) can be viewed and downloaded free of cost on the website http://mptenders.gov.in

2. Bid Document can be purchased after marking online payment of portal fees through Credit/Debit/Cash card/Internet Banking.

3. At the time of submission of the Bid the eligible bidder shall be required to:

i) pay the cost of Bid Document;

ii) deposit the Earnest Money;

iii) Submit a check list; and

iv) Submit an affidavit.

Details can be seen in the Bid Data Sheet

4. ELIGIBILTY FOR BIDDERS:

(a) At the time of submission of the Bid the bidder should have valid registration with the Government of Madhya Pradesh, PWD in the appropriate class. However, such bidders who are not registered with the Government of Madhya Pradesh and are eligible for registration can also submit their bids after having applied for registration with appropriate authority.

(b) The bidder would be required to have valid registration at the time of signing of the Contract.

(c) Failure to sign the contract by the selected bidder, for whatsoever reason, shall result in forfeiture of the earnest money deposit.

(d) Tenderer will have to submit Scanned copy of EPF Registration.

5. **Pre-qualification –** Prequalification conditions, wherever applicable, are given in the Bid Data Sheet. **(N.A.)**

6. **Special Eligibility -** Special Eligibility Conditions, if any, are given in the Bid Data Sheet. **(N.A.)**

7. The Bid Document can be purchased only online from **20.09.2025 10:30 to 03.10.2025 17:30.**

8. Amendments to NIT, if any, would be published on website only, and not in newspaper.

9. The bidder should have own plant & machinery for asphalting work and having ownership papers for plant and machinery.

10. Defect liabilities period Valid for various work are as under :-

a)	For asphalting work	-	3 Years after completion of work.
b)	For Cement Concrete roads	-	3 Years after completion of work.
c)	For Building works	-	2 rainy season after completion of work.
d)	For patch Repair work	-	1 Year

Earnest Money Deposit and the tender fee:-

- The Tender fee is to be submitted by bidder by making Online Payment only against Tender.
- The Tender EMD to be submitted by bidder only online, drawn in favor of Commissioner, Gwalior Municipal Corporation, The Proof of EMD must be submitted in Envelop-A.
- No Proposal will be accepted without valid earnest money deposit and Tender Document fee paid Online.
- The prospective bidders/contractors, will upload scanned self-certified copies of requisite proof of EMD on the website along with tender offer.

- Technical bid: - Bidders must positively complete online e-tendering procedure at www.mptenders.gov.in. They shall have to submit the documents as prescribed in the RFP online in the website.

- In case of any doubt during the tender process or after opening of the tenders, bidders may be asked to show original documents to verify the scanned documents uploaded online.

Price bid: - Bidder shall have to submit the Price bid document as per the format given in RFP and uploaded as per instructions therein. Physical submission of price bid will not be considered. The price of technically qualified bidder shall be opened online at the notified date. The bidder can view the price bid opening date by logging into web-site.

- On the due date of e-tender opening, the technical bid of bidders and EMD, will be opened online. Client reserves the right for extension of due date of opening of technical bid.
- Client reserves the right to accept or reject any or all tenders without assigning any reason what so ever.
- In case, due date for submission & opening of tender happens to be a holiday, the due date shall be shifted to the next working day for which no prior intimation will be given.
- Any change/modifications/alteration in the tender documents by the Bidder shall not be allowed and such tender shall be liable for rejection.

For amendment, if any, please visit http://www.mptenders.gov.in web site regularly. In case of any bid amendment and clarification, the responsibility lies with the bidders to note the same from web site. Client shall have no responsibility for any delay/omission on part of the bidder.

Commissioner
GWALIOR MUNICIPAL CORPORATION (GMC)

SECTION 2

INSTRUCTIONS TO BIDDERS (ITB)

A. GENERAL

1. SCOPE OF BID

The detailed description of work, hereinafter referred as 'work', is given in the Bid Data Sheet.

2. General Quality of Work:

The work shall have to be executed in accordance with the technical specifications specified in the Bid Data Sheet/Contract Data and shall have to meet high standards of workmanship, safety and security of workmen and works.

3. PROCEDURE FOR PARTICIPATION IN E-TENDERING

The procedure for participation in e-tendering is given in the Bid Data Sheet.

4. ONE BID PER BIDDER

4.1 The bidder can be an individual entity or a joint venture. The requirement of joint venture is given in the Bid Data Sheet.

4.2 No bidder shall be entitled to submit more than one bid whether jointly or severally. If he does so, all bids where in the bidder has participated shall stand disqualified.

5. Cost of Bidding

The bidder shall bear all costs associated with the preparation and submission of his bid, and no claim what so ever for the same shall lie on the Government.

6. Site Visit and examination of works

The bidder is advised to visit and inspect the Site of Works and its surroundings and obtain for itself on its own responsibility all information that may be necessary for preparing the bid and entering into a contract for construction of the work. All costs in this respect shall have to be borne by the bidder.

B. BID DOCUMENTS

7. CONTENT OF BID DOCUMENTS

The Bid Document comprises of the following documents:

1. NIT with all amendments.

2. Instructions to Bidders, bid data sheet with all Annexures

3. Conditions of Contract:

i. Part I General Conditions of Contract and Contract Data with all Annexures and

ii. Part II Special Conditions of Contract.

4. Specifications

5. Drawings.

6. Priced Bill of Quantities

7. Technical and Financial Bid

8. Letter of Acceptance

9. Agreement and

10. Any other Document(s), as specified.

8. The bidder is expected to examine carefully all instructions, conditions of contract, the contract data, forms, terms and specifications, bill of quantities, forms and drawings in the Bid Document. Bidder shall be solely responsible for his failure to do so.

9. Pre-Bid Meeting (where applicable)

Wherever the Bid Data Sheet provides for pre-bid meeting:

9.1 Details of venue, date and time would be mentioned in the Bid Data Sheet. Any change in the schedule of pre-bid meeting would be communicated on the website only, and intimation to bidders would not be given separately.

9.2 Any prospective bidder may raise his queries and/or seek clarifications in writing before or during the pre-bid meeting. The purpose of such meeting is to clarify issues and answer questions on any matter that may be raised at that stage. The Employer may, at his option, give such clarifications as are felt necessary.

9.3 Minutes of the pre-bid meeting including the gist of the questions raised and the responses given together with any response prepared after the meeting will be hosted on the website.

9.4 Pursuant to the pre-bid meeting if the Employer deems it necessary to amend the Bid Document, it shall be done by issuing amendment to the online NIT.

10. Amendment of Bid Documents

10.1 Before the deadline for submission of bids, the Employer may amend or modify the Bid Documents by publication of the same on the website.

10.2 All amendments shall form part of the Bid Document.

10.3 The Employer may, at its discretion, extend the last date for submission of bids. By publication of the same on the website.

C. PREPARATION OF BID

11. The bidders have to prepare their bids online, encrypt their Bid Data in the Bid Forms and submit Bid Seals (Hashes) of all the envelopes and documents related to the Bid required to be uploaded as per the time schedule mentioned in the key dates of the Notice Inviting e-Tenders after signing of the same by the Digital Signature of their authorized representative.

12. DOCUMENTS COMPRISING THE BID

The bid submitted online by the bidder shall be in the following parts:

Part 1 – This shall be known as **Envelope A** and would apply for all bids. Online **Envelop A** shall contain the following as per details given in the Bid Data Sheet:

i) Registration number or proof of application for registration and organizational details in format given in the bid data sheet.

ii) Payment of the cost of Bid Document;

iii) Earnest Money; and

iv) An affidavit duly notarized.

Part 2 – This shall be known as online **Envelope B** and required to be submitted only in works where pre-qualification conditions and/or special eligibility conditions are stipulated in the Bid Data Sheet. Online **Envelop B** shall contain a self-certified sheet duly supported by documents to demonstrate fulfillment of pre-qualification conditions.

Part 3 – This shall be known as online **Envelope C** and would apply to all bids. **Envelop C** shall contain financial offer in the format prescribed format enclosed with the Bid Data Sheet.

13. LANGUAGE

The bid as well as all correspondence and documents relating to the bid exchanged by the Bidder and the Employer shall be in English or Hindi. Supporting documents and printed literature that are part of the Bid may be in another language provided they are accompanied by an accurate translation of the relevant passages in English. In such case, for the purposes of interpretation of the bid, such translation shall govern.

14. TECHNICAL PROPOSAL

14.1 Only, in case of bids with pre-qualification conditions defined in the Bid Data Sheet, the Technical Proposal shall comprise of formats and requirements given in the Bid Data Sheet.

14.2 All the document/information enclosed with the technical proposal should be self-attested and certified by bidder. The bidder shall be liable for forfeiture of his earnest money deposit, if any document/information are found false/fake/untrue before acceptance of bid. if it is found after acceptance of the bid. The bid sanctioning authority may at his description forfeit his performance security/guarantee security deposit, enlistment deposit and take any other suitable action.

15. FINANCIAL BID

i. The bidder shall have to quote rates in format referred in bid data sheet, in overall percentage, and not item wise. If the bid is in absolute amount, overall percentage would be arrived at in relation to the probable amount of contact given in NIT. The overall percentage rate would apply for all items of work.

ii. Percentage shall be quoted in figures as well as in words. If any difference in figures and words is found, lower of the two shall be taken as valid and correct.

The bidder shall have to quote rates inclusive of all duties, taxes, royalties and other levies; and the Employer shall not be liable for the same.

iii. The bidder shall have to quote rates inclusive of all duties, royalties, levies and taxes except Goods and Services Tax (GST), the amount of applicable GST will be paid separately to the Contractor with each bill at the time of payment. The employer shall not be liable for any duties, taxes (except GST) royalties and levies.

16. PERIOD OF VALIDITY OF BIDS

The bids shall remain valid for a period specified in the Bid Data Sheet after the date of "close for biding" as prescribed by the Employer. The validity of the bid can be extended by mutual consent in writing.

17. EARNEST MONEY DEPOSIT (EMD)

17.1 The Bidder shall furnish, as part of the Bid, Earnest Money Deposit (EMD), in the amount specified in the Bid Data Sheet.

17.2 "EMD/Bid Security Shall be Submitted only online using options available in the tender portal within The Specified Time Limit. Bidders are advised to Process it well in Advance. No Claim Shall be Entertained Due to Delay in Online Transactions Via Payment Gateway/Banking Portal."

17.3 Bid not accompanied by EMD shall be liable for rejection as non-responsive.

17.4.1 EMD of bidders whose bids are not accepted will be returned within ten working days of the decision on the bid.

17.5 EMD of the successful Bidder will be discharged when the Bidder has signed the Agreement after furnishing the required Performance Security.

17.6 Failure to sign the contract by the selected bidder, within the specified period, for whatsoever reason, shall result in forfeiture of the earnest money deposit.

D. SUBMISSION OF BID

18. "The bidder is required to submit digitally Signed Bid i.e. Envelop A, B and C Online Only. No Physical Submission of the Bid Will be Accepted Expect in Exceptional Case Under Clause 19.7".

E. OPENING AND EVALUATION OF BID

19. PROCEDURE

19.1 Envelope 'A' shall be opened first online at the time and date notified and its contents shall be checked. In cases where Envelop 'A' does not contain all requisite documents, such bid shall be treated as non-responsive, and Envelop B and/or C of such bid shall not be opened.

19.2 Wherever Envelop 'B' (Technical Bid) is required to be submitted, the same shall be opened online at the time and date notified. The bidder shall have freedom to witness opening of the Envelop 'B'. Envelop 'C' (Financial Bid) of bidders who are not qualified in Technical Bid (Envelop 'B') shall not be opened.

19.3 Envelope 'C' (Financial Bid) of bids shall be opened online at the time and date notified. The bidder shall have freedom to witness opening of the Envelop 'C'.

19.4 After opening Envelop 'C' all responsive bids shall be compared to determine the lowest evaluated bid.

19.5 The Employer reserves the right to accept or reject any bid, and to annul the biding process and reject all the bids at any time prior to contract award, without incurring any liability. In all such cases reasons shall be recorded.

19.6 The Employer reserves the right of accepting the bid for the whole work or for a distinct part of it.

19.7 "In Exceptional Case if Physical Submission of Certain Documents is Found Essential, Then Expressed Prior Permission must be obtained in Writing by the Tender Issuing authority from an Authority, as Authorized by the State Government. In Such a Case, Such Documents are required to be Submitted Physically at the Place and Date Specified in the Bid Data Sheet. In Case of any Mismatch in the Documents Submitted in the Physical form and that uploaded online, or if the Contractor Fails to Submit the Document Physically, the Bid Shall be Liable for Rejection as non responsive."

19.8 During Bid Evaluation, the Employer or its representative may, at its discretion, ask the bidder for a clarification of its Bid. The request for clarification and the response shall be in

writing, and no change in the price or substance of the Bid of the Shall be sought, offered or permitted.

20. Confidentiality

20.1 Information relating to examination, evaluation, comparison and recommendation of contract award shall not be disclosed to bidders or any other person not officially concerned with such process until final decision on the bid.

20.2 Any attempt by a bidder to influence the Employer in the evaluation of the bids or contract award decisions may result in the rejection of its bid.

F. AWARD OF CONTRACT

21. Award of Contract

The Employer shall notify the successful bidder by issuing a 'Letter of Acceptance' (LOA) that his bid has been accepted. The Original Copy of Affidavit will have to be submitted by the Successful Bidder at the Time of Signing of the Contract.

22. Performance Security

22.1 Prior to signing of the Contract the bidder to whom LOA has been issued shall have to furnish performance security of the amount, in the form and for the duration, etc. as specified in the Bid Data Sheet.

22.2 Additional performance security, if applicable, is mentioned in the Bid Data Sheet and shall be in the form and for the duration, etc. similar to performance security.

23. Signing of Contract Agreement

23.1 The successful bidder shall have to furnish Performance security and additional performance security, if any and sign the contract agreement within 15 days of issue of LOA.

23.2 The signing of contract agreement shall be reckoned as intimation to commencement of work. No separate work order shall be issued by the Employer to the contractor for commencement of work.

23.3 In the vent of failure of the successful bidder to submit Performance Security and additional performance security, if any or sign the Contract Agreement, his EMD shall stand forfeited without prejudice to the right of the employer for taking action against the bidder.

24. CORRUPT PRACTICES

The Employer requires that bidders observe the highest standard of ethics during the procurement and execution of contracts. In pursuance of this policy, the Employer:

i. may reject the bid for award if it determines that the bidder recommended for award has, directly or through an agent, engaged in corrupt, fraudulent, collusive, or coercive practices in competing for the Contract; and

ii. may debar the bidder declaring ineligible, either indefinitely or for a stated period of time, to participate in bids, if it at any time determines that the bidder has, directly or through an agent, engaged in corrupt, fraudulent, collusive, or coercive practices in competing for, or in executing, a contract.

For the purposes of this provision, the terms set forth above are defined as follows:

a. "corrupt practice" means the offering, giving, receiving, or soliciting, directly or indirectly, anything of value to influence improperly the actions of another party;

b. "fraudulent practice" means any act or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation;

c. "coercive practice" means impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;

d. "Collusive practice" means an arrangement between two or more parties designed to achieve an improper purpose, including influencing improperly the actions of another party.

[End of ITB]

BID DATA SHEET		
General		
Sr.No.	**Particulars**	**Data**
1	Office of the	**OFFICE OF THE COMMISSIONER MUNICIPAL CORPORATION GWALIOR**
2	NIT No	**MPGMC/91/23x3/5/Jankarya/2025-26**
3	Date of NIT	**19.09.2025**
4	Bid document submitted in office From date & time	**NIL**
5	Website link	**https://www.mptenders.gov.in**
Section 1 – NIT		
Clause reference	**Particulars**	**Data**
2	Portal Fees	**As mentioned on online e-tendering portal**
3	Cost of bid document	**Rs 10,000/-**
	Cost of bid document payable at	**Online mode**
	Cost of bid document in favor of	**Online mode**
4	Affidavit format	**Annexure – B**
5	Pre-qualifications required	**No**
	If Yes, Details	**Annexure C**
6	Special Eligibility	**N.A.**
	If Yes, details	**Annexure D**
7	Key dates	**Annexure A**

Bid Date Sheet

SECTION 2 - ITB		
ITB CLAUSE	**PARTICULARS**	**DATA**
1	Name of the 'Work'	**Construction of B.T. Road and C.C. Drain work at Arpit Medical Store to Ewerald Public School and Different Street in Surya Vihar Colony Ward No. 19 Zone No.08. File No. 91/23X3/5.3rd Call.**
2	Specifications	**Annexure-E**
3	Procedure for participation in e-tendering	**Annexure-F**
4	Whether Joint Venture is allowed.	**No**
	If yes, requirement for Joint Venture	**Annexure-G**
9	Pre bid meeting to be held	**no**
	if yes, Date, time & Place	**Date ……** **Time form ……** **Place ……**
12	Envelope-A containing : i. Organization details as per 'Annexure H' ii. Cost of bid Document iii. Copy of Proof of EMD iv. Annexure-B' V. Attested Scanned copy of Valid Document PWD registration, EPF registration,, GSTIN., pan no.	**Yes.** **Yes.** **Yes.** **Yes.** **Yes.** **Gwalior Municipal Corporation**
14	Envelope-B Technical Proposal	**As per 'Annexure-I' and 'Annexure-I' (Format I-1 to I-5)**
15	Envelope-C Financial Bid	**As per Annexure J**
	Materials to be issued by the department	**As per 'Annexure-K'**
16	Period of Validity of Bid	**120 Days**

Bid Date Sheet

ITB CLAUSE	PARTICULARS	DATA
17	Earnest Money Deposit	**Rs 52,506/-**
		Amount of Earnest Money to be deposited Only Online/RTGS/NEFT in favor of Commissioner, Gwalior Municipal Corporation, (Make payments online/RTGS/NEFT Before 48 hours)
	EMD valid for a period of	~~Six Month or more~~
	FDR must be drawn in favour of	**COMMISSIONER MUNICIPAL CORPORATION GWALIOR**
21	Letter of Acceptance (LoA)	**As per 'Annexure-L'**
22	Amount of Performance Security	**3% of the Contract Amount,**
	Additional Performance Security, if any	**Additional Performance Security to be deposited @ equal to the difference between cost of PAC @ 10 percent below and contract amount considering bid rates less than ten percent below PAC to be unworkable.**
	Performance Security in the format	**As per 'Annexure-M'**
	Performance Security in favor of	**COMMISSIONER MUNICIPAL CORPORATION GWALIOR**
	Performance Security valid up to	**Valid Contract Period plus 3 months**

Annexure – A

(see Clause 1, 7 of Section 1 –NIT)

KEY DATES

Sr. No	Works Department Stage	Bidders Stage	Start		Expiry		Envelopes
			Date	Time	Date	Time	
1	Publishing Date		**19.09.2025**				
2	Document Download/Sale Start Date		**20.09.2025**	**10:30**			
3		Bid Submission Start Date	**26.09.2025**	**10:30**	**03.10.2025**	**17:30**	
4		Bid Submission Closing Date			**03.10.2025**	**17:30**	
5	Bid Opening Date	-	**06.10.2025**	**11:00**			

~~**Note: Original term deposit receipt of earnest money deposit, Payment Receipt of Online Tender Purchasing for the evidence of cost of bid document, affidavit and other necessary bid documents shall be submitted by the bidder so as to reach the office Of The Commissioner, 3rd Floor E-Tender Cell, Shri Narayan Krishna Shejwalakar Prashasanik Bhavan, Nagar Palik Nigam, City Center Gwalior - 474002 (M.P.) as prescribed in bid data sheet, on …… List of Documents so submitted must be uploaded online. Bid no. Will be written document, document will be submitted through Speed Post and document must be self attested. For opening of Technical proposal as per Key-Dates in bid data sheet**~~

Original Affidavit Shall have to be Submitted by the Bidder before Agreement.

Annexure – B
(See Clause-3 of Section 1 – NIT)

|| AFFIDAVIT ||

(To be Contained in Envelope-A)
(On Non Judicial Stamp of Rs. 100)

I/we _____ who is/ are _____ (status in the firm/ company) and competent for submission of the affidavit on behalf of M/S _____ (contractor) do solemnly affirm an oath and state that:
I/we am/are fully satisfied for the correctness of the certificates/records submitted in support of the following information in bid documents which are being submitted in response to notice inviting e-tender No. _____ for _____ (name of work) dated _____ issued by the
_____ (Name of the department).

I/we are fully responsible for the correctness of following self certified information/ documents and certificates:

1. That the self certified information given in the bid document is fully true and authentic.
2. That:
   a. Term deposit receipt deposited as earnest money, demand draft for cost of bid document and other relevant documents provided by the Bank are authentic.
   b. Information regarding financial qualification and annual turn-over is correct.
   c. Information regarding various Technical qualifications is correct.
3. No close relative of the undersigned and our firm/company is working in the department.

   OR

   Following close relatives are working in the department:
   Name _____ Post _____ Present Posting _____

Signature with Seal of the Deponent (bidder)

I/ We, _____ above deponent do hereby certify that the facts mentioned in above paras 1 to 4 are correct to the best of my knowledge and belief. Verified today _____ (dated) at _____ (place).

Signature with Seal of the Deponent (bidder)

Note: Affidavit duly notarized in original shall reach at least one Calendar day before opening of the bid.

Annexure – C
(See Clause-5 of Section 1 – NIT)

PRE-QUALIFICATIONS CRITERIA

The bidder should have:

A. Financial

i. experience of having successfully executed:

a) three similar works, each costing not less than the amount equal to 20% of the probable amount of contract during the last 3 financial years; or

b) two similar works each costing not less than the amount equal to 30% of the probable amount of contract during the last 3 financial years; or

c) one similar work of aggregate cost not less than the amount equal to 50% of the probable amount of contract in any one financial year during the last 3 financial years;

ii. Average annual construction turnover on the construction works not less than 50% of the probable amount of contract during the last 3 financial years.

iii. Executed similar items of work in any one financial year during the last 3 financial years, which should not be less than the minimum, physical requirement, if any, fixed for the work.

iv. Bid Capacity – Bidder shall be allotted work up to his available bid capacity which shall be worked out as given in format I-2 of Annexure-I

B. Physical

Physical qualifications for the work shall be as below

Sno	Particulars	Quantity	Period
1	Physical qualification required	Yes	No
2	Earth Work		
3	Concrete work		

(The Employer shall specify all physical qualifications required).

Note: Above criteria is indicative, subject to suitable stipulations by the departments and specific Bid.

Annexure – D
(See Clause-6 of Section 1 – NIT)

SPECIAL ELIGIBILITY CRITERIA

The bidder should have experience of:

A. Erection of Steel Gates - ----------

B. Construction of tunnel - ----------

Note: Above criteria are indicative, subject to suitable stipulations by the departments and specific bid.

Annexure – E
(See Clause-2 of Section 2-itb & Clause 10 of GCC)

Specifications

1. **MP……. DEPARTMENT Specifications.**
2. **MORTH**
3. **IRC**

The provisions of general / special conditions of contract, those specified elsewhere in the bid document, as well as execution drawings and notes, or other specifications issued in writing by the Employer shall form part of the technical specifications of this work.

PROCEDURE FOR PARTISIPATION IN E-TENDERING

1. **Registration of Bidders on E-Tendering System:**

   All the PWD Registered Bidders are already registered on the new e-Procurement portal http://mptenders.gov.in the user ID will be the contractor ID provided to them from MP online. The password for the new portal has been sent to the bidders registered e-mail ID. For more details may contract M/s tata Consultancy services Corporate Block, 5th Floor, DB City, Bhopal-462011 email ID: mptenders@mpsdc.gov.in helpdesk phone numbers are available on website.

2. **Digital Certificates:**

   The Bids submitted online should be signed electronically with a Class III Digital Certificate to establish the identity of the Bidder submitting the Bid online. The Bidders may obtain Class III Digital Certificates issued by an approved Certifying Authority authorized by the Controller of Certifying Authorities, Government of India.

   A Class III Digital Certificate is issued upon receipt of mandatory identity proofs along with an Application. Only upon the receipt of the required documents, a Digital Certificate can be issued. For details please visit cca.gov.in

   Note:

   1. It may take upto 7 working days for issuance of Class III Digital Certificate, hence the bidders are advised to obtain the certificate at the earliest. Thous bidder hwo alraidy have vellid class III Digital certificate need note obtain another Digital Certificate for the same. The bidders may obtain more information and the application form required to be submitted for the issuance of Digital Certificate form cca.gov.in.

   2. Bid can be submitted till bid submission end date. Bidder will require Digital Signature While bid submission.

The digital certificate issued to the Authorized User of a Partnership firm / Private Limited Company / Public Limited Company and used for online bidding will be considered as equivalent to a no-objection certificate / power of attorney to that user.

In case of Partnership Firm, majority of the Partners have to authorize a specific individual through Authority Letter signed by majority of the Partners of the firm.

In case of Private Limited Company, Public Limited Company, the Managing Director has to authorized a specific individual through authority letter. Unless the certificate is revoked, it will be assumed to represent adequate authority of the specific individual to bid on behalf of the Organization for online bids as per Information Technology Act 2000. This Authorized User will be required to obtain a Digital Certificate. The Digital Signature executed through the use of Digital Certificate of this Authorized User will be binding on the firm. It shall be the responsibility of Management / Partners of the concerned firm to inform the Certifying Authority, if the Authorized User changes, and apply for a fresh digital certificate for the new Authorized User.

3. Set Up of Bidders' Computer System:

In order for a Bidder to operate on the e-tendering System, the Computer System of the Bidder is required to be set up for Operating System, Internet Connectivity, Utilities, Fonts, etc. the details are available at http://www.mptenders.gov.in

4. Key Dates:

The Bidders are strictly advised to follow the time schedule (Key Dates) of the bid on their side for tasks and responsibilities to participate in the bid, as all the stages of each bid are locked before the start time and date and after the end time and date for the relevant stage of the bid as set by the concerned Department Official.

5. Preparation and Submission of Bids:

The Bidders have to prepare their Bids online, encrypt their Bid Data in the Bid Forms and submit Bid of all the envelopes and documents required to be uploaded related to the Tender as per the time schedule mentioned in the key dates of the Notice Inviting Tenders after signing of the same by the Digital Signature of their authorized representative.

6. Purchase of bid Documents:

For purchasing of the bid document bidders have to pay service charge online only. Which is Rs. (as per bid data sheet) cost of bid document is separately maintained in the detail NIT. The bid document shall be available for purchase to concerned eligible bidder immediately after online release of the bid and upto scheduled date and time as set in the key dates. The payments for the cost of bid document shall be made online through Dedit/Credit Card / Net-Banking or NEFT Challan Through the payment gateway provided on the portal.

7. Withdrawal Substitution and Modification of Bids:

Bidder can withdraw and modify the bid till bid submission end date.

JOINT VENTURE (J.V.)

If J.V. is allowed following conditions and requirements must be fulfilled:

1. Number of partners in a Joint Venture shall not exceed 3 (three). The partner shall comply with the following requirements:

a. One of the partners shall be nominated as being Lead Partner, and this authorization shall be evidenced by submitting a power of attomey signed by legally authorized signatories of all the partners.
b. The bid and, in case of successful bid, the Agreement, shall be signed so as to be legally binding on all partners.
c. The partner in change shall be authorized to incur liabilities and receive instructions for and on behalf of any and all partners of the joint venture and the entire execution of the contract, including payment shall be done exclusively with the partner in charge.
d. All the partners of the joint venture shall be liable jointly and severally for the excuation of the contract in accordance with the contract terms, and a statement to this effect shall be included in the authorization mentioned under {C} above as well as in the bid and in the agreement [In case of successful bid];
e. The Joint Venture agreement should indicate precisely the role and responsibilities f all the members of JV in respect of planning, design, construction, equipment, key personal, work execution, and financing of the project including operation and maintenance of the works, all members of JV should have active participation without prior approval of the employer.
f. The joint venture agreement should be registered so as to be legally valid and binding on all partners.
g. A copy of the Joint Venture Agreement entered into by the partner shall be submitted with the bid.

2. All the partners should meet out the minimum qualifying criteria required for the bid and collectively must meet the criteria specified in full. Failure to comply with this requirement will result in rejection of the joint venture's bid.
3. The performance security of joint venture shall be in the name of the partner Lead partner/joint venture.
4. Attach the power of attomey of the partners authorization the bid signatory(les) on behalf of the joint venture.
5. An individual bidder cannot at the same time be member of a joint venture applying for this bid further a member of a particular bidder joint venture cannot be member of any other joint venture applying for this bid.
6. Furnish details of participation proposed in the joint venture as below.

DETAILS OF PARTICIPATION IN THE JOINT VENTURE

PARTICIPATION DETAILS	FIRM"A" (lead Partner)	FIRM"B"	FIRM"C"
Financial			
Planning			
Construction Equipment			
Key personnel			
Execution of Work (give details on contribution of each)			

7. The partners of J.V. should satisfy the qualification criteria as below.
   a. The Lead partner must meet at least 50 % requirement o f technical and financial eligibility criteria required for the bid.

b. The other partner (s) must meet at least 25 % requirement of technical and financial eligibility criteria required for the bid.
c. The Lead partner and the other partners should together meet 100 % f all the eligibility criteria required for the bid.

8. For the meeting the minimum qualification criteria of experience of similar nature work, every partner can have experience of different works as defined in similar nature works and together should have the experience of all type of works described in similar nature works.

Annexure – H
(See Clause-12 of Section 2 – ITB & Clause 4 of GCC)

ORGANIZATIONAL DETAILS
(To be contained in Envelope-A)

S. No.	Particulars	Details
	Registration number issued by Centralized Registration System of Govt. Of M.P. Or Proof of application for registration.	(if applicable scanned copy of proof of application for registration to the uploaded)
	Valid Registration of bidder in appropriate class through Centralized Registration of Govt. of MP	Registration No. _____ Date_____ (Scanned copy of Registration to be uploaded)
	Name of Organization/Individual/ Proprietary Firm/ Partnership Firm	
	Entity of Organization Individual/ Proprietary Firm/ Partnership Firm Registered under Partnership Act)/ Limited Company, (Registered under the Companies Act-1956)/ Corporation/ Joint Venture	
	Address of Communication	
	Telephone Number with STD Code	
	Fax Number with STD Code	
	Mobile Number	
	E-mail Address for all communications	
Details of Authorized Representative		
	Name	
	Designation	
	Postal Address	
	Telephone Number with STD Code	
	Fax Number with STD Code	
	Mobile Number	
	E-mail Address	

Note: In case of partnership firm and limited company certified copy of partnership deed/ Articles of Association and Memorandum of Association along with registration certificate of the company shall have to be enclosed.

Signature of Bidder with Seal
Date: _

Annexure – I
(See Clause-14 of Section 2 – ITB)

Envelope - B, Technical Proposal

Technical Proposal shall comprise the following documents:

Sno	Particulars	Details to be submitted
1	Experience - Financial & Physical	Annexure I (Format: 1-1)
2	Annual Turnover	Annexure - 1 (Format: 1-2)
3	List of technical personnel for the key positions	Annexure - 1 (Format: 1-3)
4	List of Key equipments/ machines for quality control labs	Annexure - 1 (Format: 1-4)
5	List of Key equipments/ machines for construction work	Annexure - 1 (Format: 1-5)

Note:

1. Technical Proposal should be uploaded duly page numbered and indexed.
2. Technical Proposal uploaded otherwise will not be considered.

Annexure – I(Format : I-1)
(See Clause-14 of Section 2 – ITB)

FINANCIAL & PHYSICAL EXPERIENCE DETAILS

A. Financial Requirement:

The bidder should have completed either of the below:

a) three similar works each costing not less than the amount equal to 20% of the probable amount of contract during the last 3 financial years; or

b) two similar works each costing not less than the amount equal to 30% of the probable amount of contract during the last 3 financial years; or

c) one similar work of aggregate cost not less than the amount equal to 50% of the probable amount of contract in anyone financial year during the last 3 financial years;

To be filled in by the contractor:

i. Details of successfully completed similar works shall be furnished in the following format.
ii. Certificate duly signed by the employer shall also be enclosed for each completed similar work.

Agreement Number & Year	Name of Work	Date of Work Order	Date of Completion	Amount of Contract	Employer's Name and Address
I	II	III	IV	V	VI

Existing commitments - (Value of 'C' for Bid Capacity formula)

Agreement Number & Year	Name of Work	Date of Work Order	Date of Completion	Amount of Contract	Amount of balance work	Employer's Name and Address

B. Physical Requirement:

Execution of similar items of work in anyone financial year during the last 3 financial years should not be less than the minimum physical requirement fixed for the work

S. No.	Particulars	**Actual Quantity Executed** (To be filled in by the contractor)		
		Year – 1	Year – 2	Year – 3
1	Physical qualification required			
2	Earthwork			
3	Concrete work			

Note: 1. Certificate duly signed by the employer shall be enclosed for the actual quantity executed in anyone year during the last 3 financial years.

2. Similar works: The similarity shall be based on the physical size, complexity, methods technology or.other characteristics of main items of work viz. earth work, cement concrete, Reinforced cement concrete, brick masonry, stone masonry etc.

Annexure – I(Format : I-2)
(See Clause-14 of Section 2 – ITB)

ANNUAL TURN OVER

Requirement:

Average annual construction turnover on the construction works not less than 50% of the probable amount of contract during the last 5 financial years;

To be filled in by the contractor:

Financial Year	Payments received for contracts in progress or completed

Note:
i. Annual turnover of construction should be certified by the Chartered Accountant.
ii. Audited balance sheet including all related notes, and income statements for the above financiotvears to be enclosed.

Bid Capacity

Applicants who meet the minimum qualifying criteria in the evaluation as stated above are to be evaluated further for bid capacity as under:

Bid Capacity = (1.5 A X B) - C

Where

A = Maximum value of civil engineering works executed in anyone year during

The last five year (10% weightage per year shall be given to bring the value of work executed at present price level)

B = Proposed contract period in years.

C = Amount of work in hand at present.

Annexure - I (Format: I -3)

(*See clause 14 of Section 2 –ITB & Clause 6 of GCC*)

List of Technical Personnel for the Key Positions[1]

S. No.	Key Position	**Minimum requirement**							**Available with the bidder**						
		Minimum requirement for work costing			Qualification	Age	Similar work experience	Total Work Experience	S. No.	Name of Personnel	Key Position	Qualification	Age	Similar work experience	Total Work Experience
		Upto Rs 5 Cr	From Rs 5 to Rs 20 Cr	Above Rs 20 Cr											
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16

Note:

1. Aforesaid personnel shall be deployed within the period starting from the date of award of contract as stipulated in the contract.

2. Approval of the superintending engineer about suitability of personnel shall be obtained before deployment.

Section 2 – Annexure I (Format I-3)

Annexure I (Format: I -4)

(*See clause 14 of Section 2 -ITB*)

List of Key Equipments/ Machines for Quality Control Labs

Minimum requirement						
S. No.	**Name of Equipment/ Machinery**	**Quantity for works costing**			**Quantity Available with the Bidder**	**Remarks**
		Upto Rs 5 Cr	**From Rs 5 Cr to 20 Cr**	**Above Rs 20 Cr**		

Note: Intention to procure/lease the equipment should be accompanied by documents to the effect. The nature of documents could be any one of the under:

i) Order to the manufacturer of the plant and equipment's.
ii) Confirmation from the manufacturer.
iii) Proof of payments in full or part.
iv) Agreement to lease the equipment.

Annexure - I (Format: I -5)

(*See clause 14 of Section 2 -ITB*)

List of Key Equipments/ Machines for Construction Work (Road)

Minimum requirement						
S. No.	Name of Equipment/ Machinery	Quantity Required with the bidder for works costing			Quantity Available with the bidder	Remarks
		Up to Rs 5 Cr	From Rs 5 Cr to 20 Cr	Above Rs 20 Cr		

Note: Intention to procure/lease the plants and machinery should be accompanied by documents to the effect. The nature of documents could be any one of the under:

i) Order to the manufacturer of the plant and equipment's.
ii) Confirmation from the manufacturer.
iii) Proof of payments in full or part.
iv) Agreement to lease the equipment.

Section 2 – Annexure I (Format I-5)

`Annexure – J
(See Clause-14 of Section 2 – ITB)

FINANCIAL BID

(To be contained in Envelop-C)

NAME OF WORK :-

I/We hereby bid for the execution of the above work within the time specified at the rate …….....……(in figures)…….. (in words) percent below/ above or at par based on the Bill of Quantities and item wise rates given therein in all respects and in accordance with the specifications, designs, drawings and instructions in writing in all respects in accordance with such conditions so far as applicable. I/We have visited the site of work and ami are fully aware of all the difficulties and conditions likely to affect carrying out the work. I/We have fully acquainted myself/ourselves about the conditions in regard to accessibility of site and quarries/kilns, nature and the extent of ground, working conditions including stacking of materials, installation of tools and plant conditions effecting accommodation and movement of labour etc. required for the satisfactory execution of contract.

Should this bid be accepted, I/We hereby agree to abide by and fulfill all the terms and provisions of the said conditions of contract annexed hereto so far as applicable, or in default thereof to forfeit and pay to the Governor of Madhya Pradesh or his successors in office the s~ms of money mentioned in the said conditions.

Note:

i. Only one rate of percentage above or below or at par based on the Bill of Quantities and item wise rates given therein shall be quoted.

j. ii. Percentage shall be quoted in figures as well as in words. If any difference in figures and words is found lower of the two shall be taken as valid and correct rate. If the bidder is not ready to accept such valid and correct rate and declines to furnish performance security and sign the agreement his earnest money deposit shall be forfeited.

k. iii. In case the percentage "above" ar "below" is not given by a bidder, his bid shall be treated as non-responsive. 1

l. iv. All duties, royalties, levies and taxes except Goods and Services Tax (GST) are included in the rates (in case of percentage rate bids)/ lump-sum offer (in case of lump-sum bids) quoted by the bidder.

Signature of Bidder
Name of Bidder

The above bid is hereby accepted by me on behalf of the Governor of Madhya Pradesh dated the…….. day of …….. 20 Signature of Officer by whom accepted

Annexure – K
(See Clause-15 of Section 2 – ITB)

MATERIALS TO BE ISSUED BY THE DEPARTMENT

……..NIL……

Annexure – L
(See Clause-21 of Section 2 – ITB)

LETTER OF ACCEPTANCE

No. _____ **Dated ……**

To,

M/s……. _

(Name and address of the contractor)

Subject: ----------(Name of the work as appearing in the bid for the work)

******

Dear Sir (s),

Your bid for the work mentioned above has been accepted on behalf of the Governor of Madhya Pradesh at your bided percentage ……..below/ above or at par the Bill of Quantities and item wise rates given therein.

You are requested to submit within 15 (Fifteen) days from the date of issue of this letter:

a. The performance security/ performance guarantee of Rs. …… (in figures) (Rupees ……in words only). The performance security shall be in the shape of term deposit receipt bank guarantee of any nationalized / schedule commercial bank valid up to three months after the expiry of defects liability period.

b. Sign the contract agreement.

Please note that the time allowed for carrying out the work as entered in the bid is _____ months including/ excluding rainy season, shall be reckoned from the date of signing the contract agreement.

Signing the contract agreement shall be reckoned as intimation to commencement of work and no separate letter for commencement of work is required. Therefore, after signing of the agreement, you are directed to contact the Engineer-in-charge for taking the possession of site and necessary instructions to start the work.

Yours Faithfully
Executive Engineer

PERFORMANCE SECURITY

To

CHIEF MUNICIPLA OFFICER

WHEREAS ……[name and address of Contractor] (Hereinafter called "the Contractor") has undertaken, in pursuance of Letter of Acceptance No. ……..dated …… to execute **……..** [Name of Contract and brief description of Works] (Here in after called The Contract).

AND WHEREAS it has been stipulated by you in the said Contract that the Contractor shall furnish you with a Bank Guarantee by a recognized bank for the sum specified therein as security for compliance with his obligation in accordance with the Contract;

AND WHEREAS we have agreed to give the Contractor such a Bank Guarantee:

NOW THEREFORE we hereby affirm that we are the Guarantor and responsible to you on behalf of the Contractor, up to a total of ……[amount of guarantee]* …….(in words),such sum being payable in the types and proportions of currencies in which the Contract Price is payable, and we undertake to pay you, upon your first written demand and without cavil or argument, any sum or sums within the limits of …… [Amount of guarantee] as aforesaid without your needing to prove or to show grounds or reasons for your demand for the sum specified there in.

We hereby waive the necessity of your demanding the said debt from the contractor before presenting us with the demand.

We further agree that no change or addition to or other modification of the terms of the Contract of the Works to be performed there under or of any of the Contract documents which may be made between you and the Contractor shall in any way release us from any liability under this guarantee, and we hereby waive ~lOtice of any such change, addition or modification.

This guarantee shall be valid until 3 (three) months from the date of expiry of the Defect Liability Period.

Signature, Name and Seal of the guarantor ……
Name of Bank ……..
Address …….
Phone No., Fax No., E-mail Address, of Signing Authority ……
Date …….

- An amount shall be inserted by the Guarantor, representing the percentage the Contract Price specified in the Contract including additional security for unbalanced Bids, if any and denominated in Indian Rupees.

SECTION 3

Conditions of Contract
Part – I General Conditions of Contract

Table of Clauses GCC

Clause No	Particulars	Clause No	Particulars
	A. General	21	Payments for Variations and / or Extra Quantities
1	Definitions	22	No compensation for alterations in or restriction
2	Interpretations and Documents	23	No Interest Payable
3	Language and Law	24	Recovery from Contractors
4	Communications	25	Tax
5	Subcontracting	26	Check Measurements
6	Personnel	27	Termination by Engineer in Charge
7	Force Majeure	28	Payment upon Termination
8	Contractor's Risks	29	Performance Security
9	Liability For Accidents To Person	30	Security Deposit
10	Contractor to Construct the Works	31	Price Adjustment **(N.A.)**
11	Discoveries	32	Mobilization and Construction Mach.inery Advance **(N.A.)**
12	Dispute Resolution System	33	Secured Advance **(N.A.)**
	B. Time Control	34	Payments Certificates
13	Programme		**E. Finishing the Contract**
14	Extension of Time	35	Com pletion Certificate
15	Compensation for Delay	36	Final Account
16	Contractor's quoted percentage		**F. Other Conditions of Contract**
	C. Quality Control	37	Currencies
17	Tests	38	Labour
18	Correction of Defects noticed during the Defect Liability Period	39	Compliance with Labour Regulations
	D. Cost Control	40	Audit and Technical Examination
19	Variations - Change in original Specifications, Designs, Drawings etc.	41	Death or Permanent Invalidity of Contractor
20	Extra Items	42	Jurisdiction

A. General

1. DEFINITIONS

1.1. Bill of Quantities: means the priced and completed Bill of Quantities forming part of the Bid.

1.2. Chief Engineer: mea ns Chief Engineer of the zone/ basin concerned.

1.3. Completion: means completion of the work as certified by the Engineer-in-Charge ,in accordance with provisions of agreement.

1.4. Contract: means the Contract between the Employer and the Contractor to execute, complete and/or maintain the work. Agreement is synonym of Contract and carries the same meaning wherever used.

1.5. Contract Data: means the documents and other information which comprise of the Contract.

1.6 Contractor: means a person or legal entity whose bid to carry out the work has been accepted by the Employer.

1.7. Contractor's bid: means the completed bid document submitted by the Contractor to the Employer.

1.8. Contract amount: means the amount of contract worked out on the basis of accepted bid.

1.9. Completion of work: means completion of the. entire contracted work. Exhaustion of quantity of any particular item mentioned in the bid document shall not imply completion of work or any component thereof.

1.10. Day: means the calendar day.

1.11. Defect: means any part of the work not completed in accordance with the specifications included in the contract.

1.12. Department: means Department of the State Government viz. Water Resources Department, Public Works Department, Public Health Engineering Department, Rural Engineering Service and any other organization which adopts this document.

1.13. Drawings: means drawing including calculations and other information provided or approved by the Engineer-in-Charge.

1.14. Employer: means the party as defined in the Contract Data, who employs the Contractor to carry out the work. The Employer may delegate any or all functions to a person or body nominated by him for specified functions. The word Employer / Government / Department wherever used denote the

1.15 Engineer: means, , means the person named in the Contract Data.

1.16 Engineer in charge: means, means the person named in the Contract Data .

1.17 Equipment: means the Contractor's machinery and vehicles brought temporarily to the Site for execution of work.

1.18 Government: means Government of Madhya Pradesh.

1.19 In Writing: means communicated in written form and delivered against receipt.

1.20 Material: means all supplies, including consumables, used by the Contractor for incorporation in the work.

1.21. Superintending Engineer: means Superintending Engineer-in-Charge of the Circle concerned.

1.22. Stipulated period of completion: means the period in which the Contractor is required to complete the work. The stipulated period is specified in the Contract Data.

1.23. Specification: means the specification of the work included in the Contract and any modification or addition made or approved by the Engineer-in-Charge.

1.24. Start Date: means the date of signing of agreement for the work.

1.25. Sub-Contractor: means a person or corporate body who has a Contract with the Contractor, duly authorized toward out a part of the construction work under the Contract.

1.26. Temporary Work: means work designed, constructed, installed, and removed by the Contractor that are needed for construction or installation of the work.

1.27. Tender/Bid, Tenderer/Bidder: are the synonyms and carry the same meaning where ever used.

1.28. Variation: means any change in the work which is instructed or approved as variation under this contract.

1.29. Work: The expression "work" or "works" where used in these conditions shall unless there be something either in the subject or context repugnant to such construction, be construed and taken to mean the work by virtue of contract, contracted to be executed, whether temporary or permanent and whether original, altered, substituted or additional.

2. INTERPRETATIONS AND DOCUMENTS

2.1 Interpretations

In the contract, except where the context requires otherwise:

a. words indicating one gender include all genders;
b. Words indicating the singular also include the plural and vice versa.
c. provisions including the word "agree", "agreed" or "agreement" require the agreement to be recorded in writing;
d. written" or "in writing" means hand-written, type-written, printed or electronically made, and-resulting in a permanent record;

2.2 **Documents Forming Part of Contract:**

1. NIT with all amendments.
2. Instructions to Bidders (ITB, Bid Data Sheet with all Annexures)
3. Conditions of Contract:
   i. Part I General Conditions of Contract and the Contract Data; with all Annexures
   ii. Part II Special Conditions of Contract.
4. Specifications
5. Drawings
6. Bill of Quantities
7. Technical and Financial Bid'
8. Agreement, and
9. Any other documents), as specified.

3. Language and Law

The language of the Contract and the law governing the Contract are stated in the Contract Data Sheet.

4. Communications

All certificates, notice or instruction to be given to the Contractor by Employer/Engineer shall be sent to the address or contact details given by the Contractor in [Annexure H of ITB]. The address and contact details for communication with the Employer/Engineer shall be as per the details given in the Contract Data. Communication between parties that are referred to in the conditions shall be in writing. The notice sent by facsimile (fax) or other electronic means (email) shall also be effective on confirmation of the transmission. The notice sent by registered post or speed post shall be effective on delivery or at the expiry of the normal delivery period as undertaken by the postal service. In case of any change in address for communication, the same shall be immediately notified to Engineer-in- Charge.

5. Subcontracting

Subcontracting shall be permitted for contracts of value more than amount specified in the Contract Data with following conditions:

a. The Contractor may subcontract up to 25 percent of the contract price with the approval of the Employer in writing, but will not assign the Contract. Subcontracting shall not alter the Contractor's obligations.

b. Following shall not form part of subcontracting:

   i. Hiring of labour through a labour contractor.

ii. The purchase of Materials to be incorporated in the works.

iii. Hiring of plant & machinery

c. The sub-contractor will have to be registered in the appropriate category in the centralized registration system for contractors of the GoMP.

6. Personnel

6.1 The Contractor shall employ for the construction work and routine maintenance the technical personnel as provided in the Annexure 1-3 of Bid Data Sheet, if applicable. If the Contractor fails to deploy required number of technical staff, recovery as specified in the Contract Data will be made from the Contractor.

6.2 If the Engineer asks the Contractor to remove a person who is a member of the Contractor's staff or work force, stating the reasons, the Contractor shall ensure that the person leaves the Site within three days and has no further connection with the Works in the Contract**.**

7. Force Majeure

7.1 The term "Force Majeure" means an exceptional event or circumstance:

(a) Which is beyond a Party's control?

(b) Which such Party could not reasonably have provided against before entering into the Contract,

(c) Which, having arisen, such Party could not reasonably have avoided or overcome, and

(d) Which is not substantially attributable to the other Party?

Force Majeure may include, but is not limited to, exceptional events or circumstances of the kind listed below, so long as conditions (a) to (d) above are satisfied:

(i) War, hostilities (whether war be declared or not), invasion, act of foreign enemies,

(ii) Rebellion, terrorism, sabotage by persons other than the Contractor's Personnel, revolution, insurrection, military or usurped power, or civil war, (iii) Riot, commotion, disorder, strike or lockout by persons other than the Contractor's Personnel,

(iv) Munitions of war, explosive materials, ionizing radiation or contamination by radio-activity, except as may be attributable to the Contractor's use of such

munitions, explosives, radiation or radio-activity, and

(IV) Natural catastrophes such as earthquake, hurricane, typhoon or volcanic activity.

7.2. In the event of either party being rendered unable by force majeure to perform any Duty Or discharge any responsibility arising out of the contract, the relative obligation of the party affected by such force majeure shall upon notification to the other party be suspended for the period during which force majeure event lasts. The cost and loss sustained by either party shall be borne by respective parties.

7.3 For the period of extension granted to the Contractor due to Force Majeure the price adjustment clause shall apply but the penalty clause shall not apply. It is clarified that this sub clause shall not give eligibility for price adjustment to contracts which are otherwise not subject to the benefit of price adjustment clause.

7.4 The time for performance oj the relative obligation suspended by the force majeure shall stand extended by the period for which such cause lasts. Should the delay caused by force majeure exceed twelve months, the parties to the contract shall be at liberty to foreclose the contract after holding mutual discussions.

8. Contractor's Risks

8.1 All risks of loss or damage to physical property and of personal injury and death which arise during and in consequence of the performance of the Contract are the responsibility of the Contractor.

8.2 All risks and consequences arising from the inaccuracies or falseness of the documents and/or information submitted by the contractor shall be the responsibility of the Contractor alone.

9. **Liability for** Accidents **to** Person

The contractor shall be deemed to have indemnified and saved harmless the Government against all action, suits, claims, demands, costs etc. arising in connection with injuries suffered by any persons employed by the contractor or his subcontractor for the works whether under the General law or under workman's compensation Act, or any other statute in force at the time of dealing with the question of the liability of employees for the injuries suffered by employees and to have taken steps properly to ensure against any claim there under.

10. Contractor to Construct the Works

10.1 The Contractor shall construct, install and maintain the Works in accordance with the Specifications and Drawings as specified in the **Contract** Data.

10.2 In the case of any class of work for which there is no such specification as is mentioned in Contract Data, such work shall be carried out in accordance with the instructions and requirement of the Engineer-in-charge.

10.3 The contractor shall supply and take upon himself the entire responsibility of the sufficiency of the scaffolding, timbering, machinery, tools and implements,

and generally of all means used for the fulfillment of this contract whether such means mayor may not be approved or recommended by the Engineer.

11. Discoveries

Anything of historical or other interest or of significant value unexpectedly discovered on the Site shall be the property of the Employer. The Contractor shall notify the Engineer of such discoveries and carry out the Engineer's instructions for dealing with them.

12. Dispute Resolution System

12.1 **No dispute can be raised except before the Competent Authority Superintending engineer of Devision** in writing giving full description and grounds of dispute. It is clarified that merely recording protest while accepting measurement and/or payment shall not be taken as raising a dispute.

12.2 No dispute can be raised after 45 days of its first occurrence. Any dispute raised
after expiry of 45 days of its first occurrence shall not be entertained and the Employer shall not be liable for claims arising out of such dispute.

12.3 The Competent Authority shall decide the matter within 45 days.

12.4 Appeal against the order of the Competent Authority can be preferred within 30 days to the Appellate Authority as defined in the Contract Data. The Appellate Authority shall decide the dispute within 45 days.

12.5 Appeal against the order of the Appellate Authority can be preferred before the Madhya Pradesh Arbitration Tribunal constituted under Madhya Pradesh *Madhyastham Adhikaran Adhiniyam, 1983.*

12.6 The Contractor shall have to continue execution of the Works with due diligence notwithstanding pendency of a dispute before any authority or forum.

B. Time Control

13. Programme

13.1 Within the time stated in the Contract Data, the Contractor shall submit to the Engineer for approval a Programme showing the general methods, arrangements, order and timing for all the activities for the construction of

works.

13.2 The program shall be supported with all the details regarding key personnel, equipment and machinery proposed to be deployed on the works for its execution. The contractor shall submit the list of equipment and machinery being brought to site, the list of key personnel being deployed, the list of machinery/equipment being placed in field laboratory and the location of field laboratory along with the Programme.

13.3 An update of the Programme shall be a programme showing the actual progress achieved on each activity and the effect of the progress achieved on the timing of the remaining Works, including any changes to the sequence of the activities.

13.4 The Contractor shall submit to the Engineer for approval an updated Programme at intervals no longer than the period stated in the Contract Data. If the Contractor does not su8mit an updated Programme within this period, the Engineer may withhold the amount stated in the Contract Data from the next payment certificate and continue to withhold this amount until the next payment after the date on which the overdue Programme has been submitted.

13.5 The Engineer's approval of the Programme shall not alter the Contractor's obligations.

14. **Extension of Time**

14.1. The contract is for completion of works and therefore non approval of EOT shall not in any way invalidate the contract .The contractor will have to complete the works.

14.2 In the event of delays attributable to the contractor, the EOT shall not be given by the Engineer-in-Charge and the Liquidated Damages shall be levied from the contractor in accordance with the provisions of the contract.

14.3 In the event, the delays are not attributable to the contractor the EOT may be issued by the Engineer-in-Charge without imposition of Liquidated Damages either suo-motto or on a written request of the contractor.

It is clarified that out of the total delays in completion of works, the EOT shall be issued only for the part, which is not attributable to the contractor.

Compensation for delay

15.1 The time allowed for carrying out the work, as entered in the agreement, shall be strictly observed by the Contractor.

15.2 The time allowed for execution of the contract shall commence from the date of signing of the agreement. It is clarified that the need for issue of work order is dispensed with.

15.3 In the event milestones are laid down in the Contract Data for execution of the works, the contractor shall have to ensure strict adherence to the same.

15.4 Failure of the Contractor to adhere to the timelines and/or milestones shall attract such liquidated damages as is laid down in the Contract Data.

15.5 In the event of delay in execution of the Works as per the timelines mentioned in the Contract Data the Engineer-in-charge shall retain from the bills of the Contractor amount eqd'al to the liquidated damages livable until the Contractor makes such delays good. However, the Engineer-in-charge shall accept bankable security in lieu of retaining such amount.

15.6 If the Contractor is given extension of time after liquidated damages have been paid, the Engineer in Charge shall correct any over payment of liquidated damages by the Contractor in the next payment certificate.

15.7 In the event the Contractor fails to make good the delay until completion of the stipulated contract period (including extension of time) the sum so retained shall be adjusted against the liquidated damages levied.

16. Contractor's quoted percentage

The Contractor's quoted percentage rate referred to in the "Bid for works" will be deducted/added from/to the net amount of the bill after deducting the cost of material-supplied by the department.

17. Tests

17.1 The Contractor shall be responsible for:

a. Carrying out the tests prescribed in specifications, and

b. For the correctness of the test results, whether preformed in his laboratory or elsewhere.

17.2 The contractor shall have to establish field laboratory within the time specified and having such equipments as are specified in the Contract Data.

17.3 Failure of the Contractor to establish laboratory shall attract such penalty as is specified in the Contract Data.

17.4 Ten percent of the mandatory tests prescribed under the specifications shall be got carried out through laboratories accredited by National Accreditation Board of Laboratories (NABL) by the Engineer in Charge and the Cost of the Such Testing shall be Deducted from the Payments Due to Contractor."

18. Correction of Defects noticed during the Defect Liability Period

18.1 The Defect Liability Period of work in the contract shall be as per the Contract Data.

18.2 The Contractor shall promptly rectify all defects pointed out by the Engineer well before the end of the Defect Liability Period. The Defect Liability Period shall automatically stand extended until the defect is rectified.

18.3 If the Contractor has not corrected a Defect pertaining to the Defect Liability Period to the satisfaction of the Engineer, within the time specified by the Engineer, the Engineer will assess the cost of having the Defect corrected, and

the cost of correction of the Defect shall be recovered from the Performance Security or any amount due or that may become due to the contractor and other available securities.

D. Cost Control

19. Variations - Change in original Specifications, Designs, and Drawings etc.

19.1 The Engineer-in-charge shall have power to make any alterations, omissions or additions to or substitutions in the original specifications, drawings, designs and instructions, that may appear to him to be necessary during the progress of the work and the contractor shall carry out the work in accordance with any instructions which may be given to him in writing signed by the Engineer-in-charge, and such alterations, omission, additions or substitutions shall not invalidate the contract and any altered, additional or substituted work, which the contractor may be directed to do in the manner above specified, as part of the work, shall be carried out by the contractor on the same conditions in all respects on which he agrees to do the main work

19.2 The time for the completion of the work shall be extended in the proportion that the altered, additional or substituted work bears to the original contract work and the certificate of the Employer shall be conclusive as to such proportion.

20. Extra items

20.1 All such items which are not included in the priced BOO shall be treated as extra items.

21. Payments for Variations and / or Extra Quantities

21.1 The rates for such additional (Extra quantity), altered or substituted work / extra items under this clause shall be worked out in accordance with the following provisions in their respective order:-

a. The contractor is bound to carry out the additional (Extra quantity), work at the same rates as are specified in the contract for the work.

b. If the item is not in the priced BOO and is included in the SOR of the department, the rate shall be arrived at by applying the quoted tender percentage on the SOR rate.

c. If the rates for the altered or substituted work are not provided in applicable SOR - such rates will be derived from the rates for a similar class (type) of work as is provided in the contract (priced BOO) for the work.

d. If the rates for the altered, substituted work cannot be determined in the manner specified in the sub clause (c) above - then the rates for such composite work item shall be worked out on the basis of the concerned Schedule o Rates minus/plus the percentage quoted by the contractor.

e. If rates for a particular part or parts of the item is not in the Schedule of Rates and the rates for the altered, or substituted work item cannot be determined in the manner specified in sub clause (b) to (d) above, the rate for such part or parts will be determined by the Competent Authority as defined in the Contract Data on the basis of the rate analysis derived out of prevailing market rates when the work was done.

f. But under no circumstances, the contractor shall suspend the work on the plea of non-acceptability of rates on items falling under sub clause (a) to (d). In case the contractor does not accept the rate approved by the Engineer in Charge for a particular item, the contractor shall continue to carry out the item at the rates determined by the Competent Authority. The decision on the final rates payable shall be arrived at through the dispute settlement procedure.

22. No compensation for alterations in or restriction of work to be carried out.

22.1 If at any time after the commencement of the work, the Engineer-in-charge, for any reason whatsoever, not require the whole or any part of the work as specified in the bid to be carried out; the Engineer-in-charge shall give notice in writing of the fact to the Contractor and withdraw that whole or any part of the work.

22.2 The Contractor shall have no claim to any payments or compensation whatsoever, on account of any profit or advantage which he might have derived from the execution of work in full or on account of any loss incurred for idle men and machinery due to any alteration or restriction of work for whatsoever reason.

22.3 The Engineer-in-charge may supplement the work by engaging another agency to execute such portion of the work, without prejudice to his rights.

23. No Interest Payable

No interest shall be payable to the Contractor on any payment due or awarded by any authority.

24 Recovery from Contractors

Whenever any claim against the Contractor for the payment arises under the contract, the Department may be entitled to recover such sum by:

(a) Appropriating, in part or whole of the Performance Security and Additional Performance Security, if any; and/or Security Deposit and / or any sums payable under the contract to the contractor.

(b) If the amount recoverd in accordance with (a) above is not sufficient, the balance sum may be recovered from any payment due to the contractor under any other contract of the department, including the securities which become due for release.

(c) The department shall, further have an additional right to effect recoveries as arrears of land revenue under the *M.P. Land Revenue Code.*

25. Tax

25.1 The rates (in case of percentage rate bids)/ lump-sum offer (in case of lump-sum bids) quoted by the Contractor shall be deemed to be inclusive of all duties, royalties, levies and taxes except Goods and Services Tax (GST). The amount of applicable GST will be paid separately to the Contractor with each bill at the time of payment.

25.2 The liability, if any, on account of quarry fee, duties, taxes (except GST), royalties and levies in respect of material consumed or services rendered on public work shall be borne by the Contractor.

25.3 Any changes in the taxes due to change in legislation or for any other reason shall not be payable to the contractor.

26. Check Measurements

26.1 The department reserves to itself the right to prescribe a scale of check measurement of work in general or specific scale for specific works or by other special orders.

26.2 Checking of measurement by superior officer shall supersede measurements by subordinate officer(s), and the former will become the basis of the payment.

26.3 Any over/excess payments detected, as a result of such check measurement or 'otherwise at any stage up to the date of completion of the defect liability period specified in this contract, shall be recoverable from the Contractor, as per clause 24 above.

27. Termination by Engineer in Charge

27.1 If the Contractor fails to carry out any obligation under the Contract, the Engineer in Charge may by notice require the Contractor to make good the failure and to remedy it within a specified reasonable time.

27.2 The Engineer in Charge shall be entitled to terminate the Contract if the Contractor

a. abandons the Works or otherwise plainly demonstrates the intention not to continue performance of his obligations under the Contract;
b. the Contractor is declared as bankrupt or goes into liquidation other than for approved reconstruction or amalgamation;
c. without reasonable excuse fails to comply with the notice to correct a particular defect within a reasonable period of time;
d. the Contractor does not maintain a valid instrument of financial security as prescribed;
e. the Contractor has delayed the completion of the Works by such duration for which the maximum amount of liquidated damages is recoverable;

f. If the Contractor fails to deploy machinery and equipment or personnel or set up a field laboratory as specified in the Contract Data;

g. If the contractor, in the judgment of the Engineer in charge has engaged in corrupt or fraudulent practices in competing for or in executing the contract;

27.3 Any other fundamental breaches as specified in the Contract Data. In any of these events or circumstances, the Engineer in Charge may, upon giving 14 days' notice to the Contractor, terminate the Contract and expel the Contractor from the Site. However, in the case of sub-paragraph (b) or (g) of clause 27.2, the Engineer in Charge may terminate the Contract immediately.

27.4 Notwithstanding the above, the Engineer-in-Charge may terminate the Contract for convenience by giving notice to the Contractor

28. Payment upon Termination

28.1 If the contract is terminated under clause 27.3, the engineer shall issue a certificate for value of the work accepted on final measurements, less Advance Payments and Penalty as indicated in the Contract Data. The amount so arrived at shall be determined by the Engineer-in-Charge and shall be final and binding on both the parties.

28.2 Payment on termination under clause 27.4 above-

If the Contract is terminated under clause 27.4 above, the Engineer shall issue a certificate for the value of the work done, the reasonable cost of removal of Equipment, repatriation of the Contractor's personnel employed solely on the Works, and the Contractor's costs of protecting and securing the Works and less advance payments received up to the date of the certificate, less other recoveries due in terms of the contract and less taxes due to be deducted at source as per applicable law.

28.3 If the total amount due to the Employer exceeds any payment due to the Contractor, the difference shall be recovered as per clause 24 above.

29. **Performance Security**

The Contractor shall have to submit performance security and additional performance security, if any, as specified in the Bid Data Sheet at the time of signing of the contract. The contractor shall have to ensure that such performance security and additional performance security, if any, remains valid for the period as specified in the Contract Data.

30.**Security Deposit-**

30.1 Security Deposit shall be deducted from each running bill at the rate as specified in the Contract Data. The total amount of Security Deposit so deducted shall not exceed the percentage of Contract Price specified in the Contract Data.

30.2 The security deposit may be replaced by equivalent amount of bank guarantee or fixed deposit receipt assigned to the Employer, with validity up to 3 (three)

months beyond the completion of Defect Liability Period/ extended Defect Liability Period.

30.3 The Security Deposit shall be refunded on completion of Defect Liability Period. **31.**

31. Price Adjustment

31.1 Contract price shall be adjusted for increase or decrease in rates and price of labor, materials, fuels and lubricants in accordance with following principles and procedures and as per formula given in the contract data.

(a) The price adjustment shall apply for the work done from the start date given in the contract data up to the end of initial intended completion date or extensions granted by the Engineer and shall not apply to the work carried out beyond the stipulated time for reasons attributable to the contractor.

(b) The price adjustable shall be determined during each month from the formula given in the contract data.

(c) The following expressions and meaning are assigned to the work done during each moth:

R = Total value of work during the month. It would include the amount of secured advance granted, if any, during the month, less the amount of secured advance recovered, if any during the month. It will exclude value of works executed under variations for which no price adjustment shall be payable.

31.2 To the extent that full compensation for any rice or fall in cost to the contractor is not covered by the provisions of this or other clauses in the contract, the unit rates and prices included in the contract shall be deemed to include amounts to cover the contingency of such other rise or fall in costs.

31.3 To the extent that full compensation for any rise or fall in costs to the contractor is not covered by the provisions of this or other clauses in the contract, the unit rates and prices included in the contract shall be deemed to include amounts to cover the contingency of such other rise or fall in costs.

31.4 The index relevant to any quarter, for which such compensation is paid, shall be the arithmetical average of the indices relevant of the calendar month.

31.5 For the purpose of clarity it is pointed out that the price adjustment may be either positive or negative, i.e. if the price adjustment is in favor of the Employer, the same shall be recovered from the sums payable to the Contractor.

32. Mobilization and Construction Machinery Advance

32.1 Payment of advances shall be applicable if provided in the Contract Data.

32.2 If applicable, the Engineer in Charge shall make interest bearing advance payment to the contractor of the amounts stated in the Contract Data, against provision by the contractor of an unconditional Bank Guarantee in a form and by a nationalized/ scheduled banks, in the name as stated in the Contract Data, in amounts equal to the advance payment. The guarantee shall remain effective until the advance payment has been repaid, but the amount of the guarantee shall be progressively reduced by the amounts repaid by the contractor.

32.3 The rate of interest chargeable shall be as per Contract Data.

32.4 The construction machinery advance, if applicable, shall be limited to 80% of the cost of construction machinery and admissible only for new construction machinery.

32.5 The advance payment shall be recovered as stated in the Contract Data by deducting proportionate amounts from payment otherwise due to the Contractor. No account shall be taken of the advance payment or its recovery in assessing valuations of work done, variations, price adjustments, compensation events, or liquidated damages.

33.Secured Advance

33.1 Payment of Secured Advance shall be applicable if provided in the Contract Data.

33.2 If applicable, the Engineer shall make advance payment against materials intended for but not yet incorporated in the Works and against provision by the contractor of an unconditional Bank Guarantee in a form and by a nationalized/ scheduled bank, in the name as stated in the Contract Data, in amounts equal to the advance payment. The guarantee shall remain effective until the advance payment has been adjusted, but the amount of the guarantee shall be progressively reduced by the amounts adjusted by the contractor.

33.3 The amount of secured advance and conditions to be fulfilled shall be as stipulated in the Contract Data.

33.4 The Secured Advance paid shall be recovered as stated in the Contract Data.

34. Payment Certificates

The payment to the contractor will be as follows for construction work:

(a) The Contractor shall submit to the Engineer monthly statements of the value of the work executed less the cumulative amount certified previously, supported with detailed measurement of the items of work executed.

(b) The Engineer shall check the Contractor's monthly statement and certify the amount to be paid to the Contractor.

(c) The value of work executed shall be determined, based on the measurements approved by the Engineer/ Engineer-in-charge.

(d) The value of work executed shall comprise the value of the quantities of the items in the Bill of Quantities completed.

(e) The value of work executed shall also include the valuation of Variations and Compensation Events.

(f) All payments shall be adjusted for deductions for advance payment, security deposit, other recoveries in terms of contract and taxes at source as applicable under the law.

(g) The Engineer may exclude any item certified in a previous certificate or reduce the proportion of any item previously certified in any certificate in the light of later information.

(h) Payment of intermediate certificate shall be regarded as payments by way of advance against the final payment and not as payments for work actually done and completed.

(i) Intermediate payment shall not preclude the requiring of bad, unsound and imperfect or unskilled work to be removed and taken away and reconstructed or be considered as an admission of the due performance of the contractor any part thereof, in any respect or the occurring of any claim.

(j) The payment of final bill shall be governed by the provisions of clause 36 of GCe.

E. Finishing the Contract

35. Completion Certificate

35.1 A Completion Certificate in the prescribed format in Contract Data shall be issued by the Engineer-in-Charge after physical completion of the Work.

35.2 After final payment to the Contractor, a Final Completion Certificate in the prescribed format in the Contract Data shall be issued by the Engineer-in-Charge.

36. **Final Account**

36.1 The Contractor shall supply the Engineer with a detailed account of the total amount that the Contractor considers payable for works under the Contract within 21 days of issue of certificate of physical completion of works. The Engineer shall issue a Defects Liability Certificate and certify any payment that is due to the Contractor within 45 days of receiving the Contractor's account if it is correct and complete. If the account is not correct or complete, the Engineer shall issue within 45 days a schedule that states the scope of the corrections or additions that are necessary. If the Account is still unsatisfactory after it has been

resubmitted, the matter shall be referred to the Competent Authority as defined in the Contract Data, who shall decide on the amount payable to the Contractor after hearing the Contract Or and the Engineer in Charge.

36.2 In case the account is not received within 21 days of issue of Certificate of Completion as provided in clause 32.1 above, the Engineer shall proceed to finalize the account and issue a payment certificate within 28 days.

F. Other Conditions of Contract

37. Currencies

~ All payments will be made in Indian Rupees.

38. Labour

38.1 The Contractor shall, unless otherwise provided in the Contract, make his own arrangements for the engagement of all staff and labour, local or other, and for their payment, housing, feeding and transport.

38.2 The Contractor shall, if required by the Engineer, deliver to the Engineer a return in detail, in such form and at such intervals as the Engineer may prescribe, showing the staff and the numbers of the several classes of labour from time to time employed by the Contractor on the Site and such other information as the Engineer may require.

39. Compliance with Labour Regulations

39.1. During continuance of the Contract, the Contractor and his sub-Contractors shall abide at all times by all existing labour enactments and rules made there under, regulations, notifications and bye laws of the State or Central Government or local authority and any other labour law (including rules), regulations, bye laws that may be passed or notification that may be issued under any labour law in future either by the State or the Central Government or the local authority. Salient features of some of the major labour laws that are applicable to construction industry are given in the Contract Data. The Contractor shall keep the Employer indemnified in case any action is taken against the Employer by the competent authority on account of contravention of any of the provisions of any Act or rules made their under, regulations or notifications including amendments .. If the Employer is caused to payor reimburse, such amounts as may be necessary to cause or observe, or for non-observance of the provisions stipulated in the notifications/ byelaws/ Acts/ Rules/ regulations including amendments, if any, on the part of the Contractor, the Engineer/Employer shall have the right to deduct from any

money due to the Contractor including his ~amount of performance security. The Employer/Engineer shall also have right to recover from the Contractor any sum required or estimated to be required for making good the loss or damage suffered by the Employer. The employees of the Contractor and the Sub-Contractor in no case shall be treated as the employees of the Employer at any point of time.

40. **Audit and Technical Examination**

Government shall have the right to cause an audit and technical examination of the works and the final bill of the contract including all supporting vouchers, abstract etc. to be made after payment of the final bill and if as a result of such audit and technical examination any sum is found to have been overpaid in respect of any work done by the contractor under the contract or any work claimed by him to have been done under the contract and found not to, have been executed, the Contractor shall be liable to refund the amount of overpayment and it shall be lawful for Government to recover the same from him in the manner prescribed in clause 24 above and if it is found that the Contractor was paid less than what was due to him, under the contract in respect of any work executed by him under it, the amount of such under payment shall be duly paid by Government to the Contractor.

41. Death or Permanent Invalidity of Contractor

If the Contractor is an individual or a proprietary concern, partnership concern, dies during the currency of the contract or becomes permanently incapacitated, where the surviving partners are only minors, the contract shall be closed without levying any damages/ compensation as provided for in clause 28.2 of the contract agreement. However, if the competent authority is satisfied about the competence of the survivors, then the competent authority shall enter into a fresh agreement for the remaining work strictly on the same terms and conditions under which the contract was awarded.

42. Jurisdiction

This contract has been entered into the State of Madhya Pradesh and its validity, construction, interpretation and legal effect shall be subjected to the courts at the place where this agreement is entered into. No other jurisdiction shall be applicable.

[End of GCC]

Contract Data

GCC CLAUSE	PARTICULARS	DATA
1.14	Employer	Municipal Corporation/Municipal Council, their Commissioner/ Chief Municipal Officer.
1.15	Engineer	In the case of Gwalior Municipal Corporation relevant Executive Engineer.
1.16	Engineer in Charge	Executive Engineer Municipal Corporation Gwalior
1.22	Stipulated Period of Completion	1 Year
3	Language & Law of contract	English and Indian Contract act 1872
	Address & contract details of the contractor	
4	Address & contact details of the Employer/Engineer, Phone, Fax, E-mail	
5	Subcontracting permitted for the Contract value.	**The contractor may subcontract up to 25 percent of the contract price with the approval of the Employer in writing, but will not assign the contract. Subcontracting shall not alter the contract Obligations.**
6	Technical Personnel to be provided by the contractor.	**The Assistant Engineer or Sub-Engineer**
	Penalty, if required Technical Personnel not employed	
10	Specifications	As Per Estimate IRCC Specification
	Drawings	
12	Competent Authority for deciding dispute under for Dispute Resolution System	**The appellate authority will be Superintending Engineer/City Engineer.**
	Appellate Authority for deciding dispute under Dispute Resolution System	**Engineer in Chief/Chief Engineer UADD**
13	Period for submission of updated construction program	**15 Days from Signing the Agreement**
	Amount to be withheld for not submitting construction program in the prescribed period	**10% the Contract Amount**

Contract Data

GCC CLAUSE	PARTICULARS	DATA
14	Competent Authority for granting Time Extension	The time will extended according to the provision of Madhya Pradesh Municipal Corporation Act 1956 and ordered by Commissioner of Municipal Corporation Gwalior
15	Milestones laid down for the contract	As per 'Annexure-O'
	If Yes, details of Milestones	
	Liquidated damage	As per 'Annexure-P'
17	List of equipment for lab	As per Requirement for Field Test
	Time to establish lab	**Field laboratory will have to establish within 15 days from the date of agreement.**
	Penalty for not establishing field Laboratory	25,000/- Per Month
18	Defect Liability Period	The defect liability period of all type of road work will be 5 years.10% amount with Hold up to Guarantee Period In other case it will be decided by Executive Engineer case to case.
21	Competent Authority for determining the rate	**The competent authority to set the rates will be Superintending Engineer/City Engineer /E-in-C.**
27	Any other condition for breach of contract	As Per Agreement
28	Penalty	Penalty Shall include: (a) Security deposit as per clause 30 of General conditions of contract. and (b) liquidated Damages imposed as per clause 15 or Performance security (Guarantee) including Additional Performance Security (Guarantee), if any as per clause 29 of General condition of contract, whichever is higher.
29	Performance guarantee (Security) shall be valid up to	Three months beyond the completion of defect Liability Period (Maintenance Guarantee Period)
	Security Deposit to be deducted from each running bill	**At the rate of 7% of Gross Amount of Running Bill**
30	Maximum limit of deduction of Security Deposit	Up to 7% of Final Contract Amount.
31	Clause 31.1 (1) Price adjustment shall be applicable	NO
	Clause 31.2.4 Weight ages of Component in the work	

32	Clause 32.1 Mobilization and Construction Machinery Advance Applicable	
	Clause 32.2 If yes, Unconditional Bank Guarantee	
	Clause 32.3 If yes, Rate of interest chargeable advances	
	Clause 32.4 If yes, Type & Amount of Advance payment that ca n be paid	
	Clause 32. 5 If yes, Recovery of advance payment	
33	Clause 33.1 Secured Advance Applicable	NO
	Clause 33.2 if yes, Unconditional Bank Guarantee	
	Clause 33.3 if yes, Amount of Secured Advance	
	Clause 33.4 if yes, Recovery of Secured advance	
35	Completion Certificate - after physical completion of the Work	As per 'Annexure-U'
	Final Completion Certificate - after final payment on completion of the work	As per 'Annexure-V'
36	Competent Authority	Commissioner, Gwalior Municipal Corporation
39	Salient features of some of the major labour laws that are applicable	As per 'Annexure-W'
41	Competent Authority	Commissioner, Gwalior Municipal Corporation

Annexure – N

(See Clause-10 of Section 3 – GCC)

DRAWING

List of Drawing;-

ANNEXURE –O

(See Clause 15 of Section 3 of GCC)

Details of Milestones

The Time Allowed for the Carrying out the Work as Entered in the Tender form shall be strictly observed by the Contractor and shall be deemed to be Essence of the Contract and shall be Reckoned Immediately 14 Days after Signing of agreement.

The Work shall Throughout the Stipulated Period of Contract be Preceded with all Due Diligence Keeping in View that Time is the Essence of the Contract. The Contractor shall be bound in All Cases to Complete.

-1/8th of the Whole Work before 1/4th of the Whole Time Allowed under the Contract has Elapsed.

-3/8th of the Work Before ½ of Such Time Has Elapsed.

-3/4th of the Work Before ¾ of Such Time Has Elapsed.

Compensation for Delay

If the contractor fails to achieve the milestones, and the delay in execution of work is attributable to the contractor/the Employer shall retain an amount from the sums payable and due to the contractor as per following scale -

h. Slippage up to 25% in financial target during the milestone under consideration - 2.5% of the work remained unexecuted in the related time span.

ii. Slippage exceeding 25% but Up to 50% in financial target during the milestone under consideration 5% of the work remained unexecuted in the related time span ..

iii. Slippage exceeding 50% but **Up** to 75% in financial target during the milestone under consideration -7.5% of the work remained unexecuted in the related time span ..

iv. Slippage exceeding 75% in financial target during the milestone under consideration -10% of the work remained unexecuted in the related time span.

Note: For arriving at the dates of completion of time span related to different milestones, delays which are not attributable to the Contractor shall be considered. The slippage on any milestone is if made good in subsequent milestones or at the time of stipulated period of completion, the amount retained as above shall be refunded. In case the work is not completed within the stipulated period of completion along with all such extensions which are granted to the Contractor for either Employer's default or Force Majeure, the compensation shall be levied on the contractor at the rate of 0.05% per day of delay limited to a maximum of 10% of contract price. The decision of Superintending **Engineer** shall be final and binding upon both the parties

Annexure - Q
(See Clasue-17 of Section 3- GCC)

LIST OF EQUIPMENT FOR QUALITY CONTROL LAB

Annexure – R
(See Clause-31 of Section 3 – GCC)

PRICE ADJUSTMENT

The formulas for adjustment of price are as follow:

R = Value of work as defined in Clause 31.2(3) of General Conditions of Contract

Weightages* of component in the work

S. No	Component	Percentage of component in the work
1	Cement - Pc	
2	Steel - P_s	
3	Bitumen - P_b	
4	POL - P_f	

- Weightages of various components of the work shall be as determined by the competent technical sanction authority.

Adjustment for cement component

(ii) Price adjustment for increase or decrease in the cost of cement procured by the contractor shall be paid in accordance with the following formula:

$Vc = 0.85 \times pc/100 \times R \times (C_1 - C_O)/C_o$

Vc= increase or decrease in the cost of work during the month under Consideration due to changes in rates for cement.

C_o= The all India wholesale price index for Grey cement on the date of opening of Bids as *published by the Ministry of Industrial Development, Government of India, New Delhi. (www.eaindustry.nic.in)*

C_1= The all India average wholesale price index for Grey cement for the month under consideration as *published by Ministry of Industrial Development, Government of India New Delhi. (www.eoindustry. nic. in)*

Pc= Percentage of cement component of the work

Note: For the application of this clause, index of Grey Cement has been chosen to represent Cement group.

Adjustment of steel component

(iii) Price adjustment for increase or decrease in the cost of steel procured by the Contractor shall be paid in accordance with the following formula:

V_s= 0.85 x P_s x /100 x R x (5_1-5_0)/5_0

V_s= Increase or decrease in the cost of work during the month under consideration due to changes in the rates for steel.

5_0= The all India wholesale price index for steel (Bars **and Rods)** on the date of opening of Bids as published by the *Ministry of Industrial Development, Government of India, New Delhi. (www.eaindustry.nic.iA)*

Si = The all India average wholesale price index for steel (Bars and Rods) for the month under consideration as *published by Ministry of Industrial Development, New Delhi. (www~eaindustry.nic.in)*

Ps= Percentage of steel component of the work.

Note: For the application of this clause, index of Bars and Rods has been chosen to represent steel group.

Adjustment of bitumen component

(iv) Price adjustment for increase or decrease is the cost of bitumen shall be paid in accordance with the following formula:

Vb= 0.8Sx Pb/ 100xRx (Bi- Ba) / Ba

Vb= Increase or decrease in the cost of work during the month under consideration due to changes in rates for bitumen.

Ba= the official retail price of bitumen at the IOC depot at nearest center on the date of opening of Bids.

Bi= the official retail price of bitumen of IOC depot at nearest center for the rs" day of the month under consideration.

Pb = Percentage of bitumen component of the work.

Adjustment of POL (fuel and lubricant) component

(V) Price adjustment for increase or decrease in cost of POL (fuel and lubricant) shall be paid in accordance with the following formula:

VI= 0.85 x PI/lOa x R x (Fi - Fa) / Fa

V_f = Increase or decrease in the cost of work during the month under consideration due to changes in rates for fuel and lubricants.

F_0= The official retail price of High Speed Diesel (HSD) at the existing consumer pumps of IOC at nearest center on the date of opening of Bids.

Fi = The official retail price of HSD at the existing consumer pumps of IOC at nearest center for the is 15 day of month of the under consideration.

PI = Percentage of fuel and lubricants component of the work.

Note: For the application of this clause, the price of High Speed Diesel has been chosen to represent fuel and lubricants group.

Annexure - S
(See clause 32 at Section 3 -GCC)

Bank Guarantee Form for Mobilization and Construction Machinery Advance

To,

_____ [name of Employer]
_____ [address of Employer]
_____ [name of Contractor]

In accordance with the provisions of the General Conditions of Contract, clause 31 ("Mobilization and Construction Machinery Advance") of the above-mentioned Contract _____ [name and address of Contractor] (hereinafter called "the Contractor") shall deposit with _____ _____ _____ _____ [name of Employer] a bank guarantee to guarantee his proper and faithful performance under the said Clause of the Contract in an amount of _____ _____[amount of Guarantee] _____ [in words).

We, the _____[bank of financial institution], as instructed by the Contractor, agree unconditionally and irrevocably to guarantee as primary obligator and not as surety merely, the pavrnent to _____ _____ _____ _____ [name of Employer] on his first demand without whatsoever right of obligation on our part and without his first claim to the Contractor,' in the amount not exceeding _____ _____ [amount of guarantee] _____ [in words).

We futher agree that no change or addition to or other modification of the terms of the Contractor or Works to be performed there under or of any of the Contract documents which may be made between _____ _____ _____ _____ [name of Employer) and the Contractor, shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition or modification.

This guarantee shall remain valid and in full effect from the date of the advance payment under the Contract until _____ [name of Employer) receives full repayment of the same amount from the Contractor.

Yours truly,

Signature and Seal: ----------
Name of Bank/Financial Institution: _
Address:
Date: _

An amount shall be inserted by the Bank or Financial Institution representing the amount of the Advance Payment, and denominated in Indian Rupees.

Annexure -T
(See clause 33 *of Section* 3 *-GCC)*

Bank Guarantee Form for Secured Advance

INDENTURE FOR SECURED ADVANCES

This indenture made the _____ day of _____ 20_ BETWEEN _____ (hereinafter called the contractor which expression shall where the context so admits or implies be deemed to include his executors, administrators and assigns) or the one part and the Employer of the other part.

Whereas by an agreement dated …….. (Hereinafter called the said agreement) the contractor has agreed.

AND WHEREAS the contractor has applied to the Employer that he may be allowed advanced on the security of materials absolutely belonging to him and brought by him to the site of the works the subject of the said agreement for use in the construction of such of the works as he has undertaken to executive at rates fixed for the finished work (inclusive of the cost of materials and labour and other charges)

AND WHEREAS the Employer has agreed to advance to the Contractor the sum of Rupees _____ _____ on the security of materials the quantities and other particulars of which are detailed in Accounts of Secured Advance attached to the Running account Bill for the said works signed by the Contractor on ……. and the Employer has reserved to himself the option of making any further advance or advances on the security of other materials brought by the Contractor to the site of the said works.

Now THIS INDENTURE WITNESSETH that in pursuance of the said agreement and in consideration of the sum of Rupees _____ on or before the execution of these presents paid to the Contractor by the Employer (the receipt where of the Contractor doth hereby acknowledge) and of such further advances (if any) as may be made to him as a for said the Contractor doth hereby covenant and agree with the President and declare as follows: That the said sum of Rupees so

advanced by the Employer to the Contractor as aforesaid ancj all or any further sum of sums advanced as aforesaid shall be employed by the Contractor in or towards expending the execution of the said works and for no other purpose whatsoever.

(1) That the materials details in the said Account of Secured Advances which have been offered to and accepted by the Employer as security are absolutely the Contractor's own propriety and free from encumbrances of any kind and the contractor will not make any application for or receive a further advance on the security of materials which are not absolutely his own property and free from encumbrances of any kind and the Contractor indemnified the Employer against all claims to any materials in respect of which an advance has be made to him as aforesaid.

(2) That the materials detailed in the said account of Secured Advances and all other materials on the security of which any further advance or advances may hereafter be made as aforesaid (hereafter called the said materials) shall be used by the Contractor solely in the execution of the said works in accordance with the directions of the Engineer.

(3) That the Contractor shall make at his own cost all necessary and adequate arrangements for the proper watch, safe custody and protection against all risks of the said materials and that until used in construction as aforesaid the said materials shall remain at the site of the said works in the Contractor's custody and on his own responsibility and shall at all times be open to inspection by the Engineer or any officer authorized by him. In the event of the said materials or any part thereof being stolen, destroyed or damaged or becoming deteriorated in a greater degree than is due to reasonable use and wear thereof the Contractor will forthwith replace the same with other materials of like quality or repair and make good the same required by the Engineer.

(4) That the said materials shall not be removed from the site of the said works except with the written permission of the Engineer or an officer authorized by him on that behalf.

(5) That the advances shall be repayable in full when or before the Contract receives payment from the Employer of the price payable to him for the said works under the terms and provisions of the said agreement. Provided that if any intermediate payments are made to the Contractor on account of work done than on the occasion of each such payment the Employer will- be at liberty to make a recovery from the Contractor's bill for such payment by deducting there from the value of the said materials than actually used in the construction and in respect of which recovery has not been made previously, the value for this purpose being determined in respect of each description of materials at the rates at which the amounts of the advances made under these presents were calculated.

(6) That if the Contractor shall at any time make any default in the performance or observance in any respect of any of the terms and provisions of the said agreement or of these presents the total amount of the advance or advances that may still be owing of the Employer shall immediately on the happening of such default be re- payable by the Contractor to be the Employer together with interest thereon at twelve percent per annum from the date or' respective dates of such advance or advances to the date of repayment and with all costs, charges, damages and expenses incurred by the Employer in or for the recovery thereof or the enforcement of this security or otherwise by reason of the default of the Contractor and the Contractor hereby covenants and agrees with the Employer to reply and pay the same respectively to him accordingly

(7) That the Contractor hereb'fcharges all the said materials with the repayment to the Employer of the said sum of Rupees and any further sum of sums advanced as aforesaid and all costs, charges, damages and expenses payable under these presents PROVIDED ALWAYS and it is hereby agreed and declared that notwithstanding anything in the said agreement and without prejudice to the power contained therein if and whenever the covenant for payment and repayment here-in-before contained shall become enforceable and the money owing shall not be paid in accordance there with the Employer may at any time thereafter adopt all or any of the following courses as he may deem best:

(a) Seize and utilize the said materials or any part thereof in the completion of the said works on behalf of the contractor in accordance with the provision in that behalf contained in the said agreement debiting the contractor with the actual cost of effecting such completion and the amount due to the contractor with the value of work done as if he had carried it out in accordance with the said agreement and at the rates thereby provided. If the balance is against the contractor, he is to pay same to the Employer on demand.

(b) Remove and sell by public auction the seized materials or any part thereof and out of the moneys arising from the sale retain all the sums aforesaid repayable or payable to the Employer under these presents and pay over the surplus (if any) to the Contractor.

(c) Deduct all or any part of the moneys owing out of the security deposit or any sum due to the Contractor under the said agreement.

(8) That except in the event of such default on the part of the contractor as aforesaid interest on the said advance shall not be payable.

(9) That in the event of any conflict between the provisions of these presents and the said agreement the provisions of these presents shall prevail and in the event of any dispute or difference arising over the construction or effect of these presents the settlement of which has not been here-in-before expressly provided for the same shall be referred to the Employer whose decision shall be final and the provision of the Indian Arbitration Act for the time being in force shall apply to any such reference.

Annexure - U

(See clause 35 of Section 3 -GCC)

Physical Completion Certificate

Name of Work: : .....

Agreement No ...., Date .....

Amount of Contract : **Rs.**

Name of Agency: :

Used M B No. .....

Last measurement recorded

a. Page No.& MB No.

b. Date

Certified that the above mentioned work was physically completed on ……..… (Date) and taken over on ……. (Date) and that I have satisfied myself to best of my ability that the work has been done properly.

Date of issue

Executive Engineer
Municipal Corporation Gwalior

Annexure - V

(See clause 35 of Section 3 -GCC)

Final Completion Certificate

Name of Work: : .....

Agreement No ...., Date .....

Amount of Contract : **Rs.**

Name of Agency: :

Used M B No. .....

Last measurement recorded

a. Page No.& MB No.

b. Date

Certified that the above mentioned work was physically completed on ……..… (date) and taken over on ……. (date)

Agreemented amount Rs …….

Final Amount paid to contractor Rs……..

Incumbency of officers for the work

I have satisfied myself to best of my ability that the work has been done properly.

Date of issue …….

Executive Engineer
Municipal Corporation Gwalior

Annexure - W
(See clause 39 af Section 3 -GCC)

Salient Features of Some Major Labour Laws Applicable

a) Workmen Compensation Act 1923: - The Act provides for compensation in case of injury by accident arising out of and during the course of employment.

b) Payment of Gratuity Act 1972: - Gratuity is payable to an employee under the Act on satisfaction of certain conditions on separation if an employee has completed the prescribed minimum years (say, five years) of service or more or on death the rate of prescribed minimum days'(say, 15 days} wages for every completed year of service. The Act is applicable to all establishments employing the prescribed minimum number (say, 10) or more employees.

c) Employees P.F. and Miscellaneous Provision Act 1952: The Act Provides for monthly contributions by the Employer plus workers at the rate prescribed (say, 10% or 8.33%). The benefits payable under the Act are:

   i. Pension or family pension on retirement or death as the case may be.

   ii. Deposit linked insurance on the death in harness of the worker.

   III. Payment of P.F. accumulation on retirement/death etc.

d) Maternity Benefit Act 1951: - The Act provides for leave and some other benefits to women employees in case of confinement or miscarriage etc.

e) Contract labour (Regulation & Abolition) Act 1970: - The Act provides for certain welfare measures to be provided by the Contractor to contract labour and in case the Contractor fails to provide, the same are required to be provided, by the Principal Employer by Law. The principal Employer is required to take Certificate of Registration and the Con1jactor is required to take license from the designated Officer. The Act is applicable to the establishments or Contractor of Principal Employer if they employ prescribed minimum (say 20) or more contract labour.

f} Minimum Wages Act 1948: - The Employer is to pay not less than the Minimum Wages fixed by appropriate Government as per provisions of the Act if the employment is a scheduled employment. Construction of buildings, roads, runways is scheduled employment.

g) Payment of Wages Act 1936: - It lays down as to by what date the wages are to be paid, when it will be paid and what deductions can be made from the wages of the workers.

h) Equal Remuneration Act 1979: - The Act provides for payment of equal wages for work of equal nature to male and female workers and for not making discrimination against female employees in the matters of transfers, training and promotions etc.

i) Payment of Bonus Act 1965: - The Act is applicable to all establishments employing prescribed minimum (say, 20) or more workmen. The Act provides for payments of annual bonus within the prescribed range of percentage of wages to employees drawing up to the prescribed amount of wages, calculated in the prescribed manner. The Act does not apply to certain establishments. The newly set-up establishments are exempted for five years in certain circumstances. States may have different number of employment size.

j) Industrial Disputes Act 1947: - The Act lays down the machinery and procedure for resolution of industrial disputes, in what situations a strike or lock-out becomes illegal and what are the requirements for laying off or retrenching the employees or closing down the establishment.

k) Industrial Employment (Standing Orders) Act 1946: - It is applicable to all establishments employing prescribed minimum (say, lOa, or 50). The Act provides for laying down rules governing the conditions of employment by the Employer on matters provided in the Act and gets these certified by the designated Authority.

I) Trade Unions Act 1926: - The Act lays down the procedure for registration of trade unions of workmen and Employers. The Trade Unions registered under the Act have been given certain immunities from civil and criminal liabilities.

m) Child labor (Prohibition & Regulation) Act 1986: - The Act prohibits employment of children below 14 years of age in certain occupations and processes and provides for regulations of employment of children in all other occupations and processes. Employment of child labour is prohibited in building and construction industry.

n) Inter-State Migrant Workmen's (Regulation of Employment & Conditions of Service) Act 1979: - The Act is applicable to an establishment which employs prescribed minimum (say, five) or more inter-state migrant workmen through an intermediary (who has recruited workmen in one state for employment in the establishment situated in another state). The Inter-State migrant workmen, in an establishment to which this Act becomes applicable, are required to be provided certain facilities such as Housing, Medical-Aid, Travelling expenses from home up to the establishment and back etc.

o) The Building and Other Construction workers (Regulation of Employment and Conditions of Service) Act 1996 and the Cess Act of 1996: - All the establishments who carryon any building or other construction work and employs the prescribed minimum (say, 10) or more workers are, covered under this Act. All such establishments are required to pay cess at the rate not exceeding 2% of the cost of construction as may be modified by the Government. The Employer of the establishment is required to provide safety measures at the building or construction work and other welfare measures, such as canteens, first-aid facilities, ambulance, housing accommodations for workers near the work place etc. The Employer to whom the Act applies has to obtain a registration certificate from the Registering Officer appointed by the Government.

p) **Factories Act 1948:** - The Act lays down the procedure for approval of plans before setting up a factory, health and safety provisions, welfare provisions, working hours, annual earned leave and rendering information regarding accidents or dangerous occurrences to designated authorities. It is applicable to premises employing the prescribed minimum (say, 10) persons or more with aid of power or another prescribed minimum (say, 20) or more persons without the aid of power engaged in manufacturing process.

SECTION 3

Conditions of Contract

Part - II Special Conditions of Contract [SCC]

SECTION 4

BILL OF QUANTITIES (BOQ)

General Description of work:

Probable Amount of Contract:

(Rs. In Fig u re) ……..……

(Rs. In Wo rd s) …….

S. No.	Particulars of Item of Work	Quantity	Unit	Rate	Amount (in figure)	Amount (in words)	Remarks
I	II	III	IV	V	VI	VII	VIII
1.							
2.							
3.							
4.							
5.							
6.							
7.							
8.							
9.							
10.							
11.							
12.							
13.							
14.							
15.							
	Total Amount (Rs. In Figure)						

Total Amount (Rs. In Words) …….
–

Executive Engineer
Municipal Corporation Gwalior

SECTION 5
AGREEMENT FORM
AGREEMENT

This agreement, made on the _____ day of _____ between .....(name and address of Employer) (hereinafter called " the Employer) and Shri …….....(name and address of contractor) hereinafter called "the Contractor" of the other part. Whereas the Employer is desirous that the Contractor execute ……(name and identification number of Contract) (hereinafter called "the Works") and the ,Employer has accepted the Bid by the Contractor for the execution and completion of such Works and the remedying of any defects therein, at a cost of Rs. ……./-

NOW THIS AGREEMENT WITNESSED as follows:

1. In this Agreement, words and expression shall have the same meanings as are respectively assigned to them in the conditions of contract hereinafter referred to and they shall be deemed to form and be read and construed as part of this Agreement.
2. In consideration of the payments to be made by the Employer to the Contractor as hereinafter mentioned, the Contractor hereby covenants with the Employer to execute and complete the Works and remedy any defects therein in conformity in all aspects with the provisions of the contract.
3. The Employer hereby covenants to pay the Contractor in consideration of the execution and completion of the Works and the remedying the defects wherein Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.
4. The following documents shall be deemed to form and be ready and construed as part of this Agreement viz.
   i. letter of Acceptance
   ii. Contractor's Bid
   iii. Condition of Contract: General and Special
   iv. Contract Data v. Bid Data vi. Drawings
   vii. Bill of Quantities and
   viii. Any other documents listed in the Contract Data as forming part of the Contract.

In witnessed whereof the parties there to have caused this Agreement to be executed the day and year first before written.

The Common Seal of _____was hereunto affixed in the presence of:

Signed, Sealed and Delivered by the said _____ _____ in the presence of:

Binding Signature of Employer _____
Binding Signature of Contractor _____

प्ररूप–30

अनुबन्ध का प्ररूप

[नियम 105]

नगर निगम का नाम .....

स्टाम्प पेपर (उचित मूल्य का)

आज.....माह.....के दिवस दो हजार.....को श्री..... (जो इसके बाद ठेकेदार कहे जाएंगे) एक पक्ष और नगरपालिका..... (जिसे इसके बाद पालिका कहा जाएगा) दूसरे पक्ष के मध्य यह अनुबंध निष्पादित किया गया है । जहाँ ठेकेदार ने दिनांक.....को..... उपलब्ध करने, आपूर्ति परिदान अधिष्ठापित करने, निर्माण करने, रखने एवं संधारण करने.....एवं अनुसूची में उल्लिखित सभी अन्य कार्यों के लिए निविदा दी है और उपरोक्त निविदा मुख्य नगरपालिका अधिकारी/अध्यक्ष द्वारा स्वीकृत की गई है और यह आवश्यक है कि जो अनुबंध निष्पादित किया गया है, वह दस्तावेज में लिखित रूप में लिखा जाएगा ।

अब, निम्न रूप से सहमत हैं--

1. ठेकेदार निम्नांकित शर्तों के अनुसार कार्य की अनुसूची में विवरण के अनुसार और उसमें दर्शाए गए भुगतान के बदले में निष्पादित करेगा ।
2. दस्तावेज में समाविष्ट ठेका निविदा में दर्शायी गई ठेके संबंधी प्रविष्टियाँ और उसकी स्वीकृति के प्रतिस्थापन स्वरूप होगा और इन शर्तों के विपरीत होने पर ठेका प्रवृत्ति हीन हो जाएगा ।

शर्तें--

1. कार्य पूर्ण कर्मठता से किया जाएगा एवं सभी कार्य अति सारभूत एवं कुशल कारीगरी के साथ निष्पादित किए जाएंगे । उपयोग की जाने वाली सामग्री, यदि ठेकेदार द्वारा प्रदाय की जाएगी, वह उत्तम गुणवत्ता की होगी एवं सभी प्रकरणों में यंत्री/उपयंत्री/मुख्य नगरपालिका अधिकारी की स्वीकृति के अध्यधीन होगी एवं निर्माण कार्य की प्रगति की दर और कार्य या सामग्री की गुणवत्ता पर उनका निर्णय अंतिम होगा ।
2. निष्पादित किए गए कार्य की मात्रा का माप किया जाएगा एवं संतोषजनक रूप से कार्य के पूर्ण होने पर भुगतान किया जाएगा ।
3. खराब सामग्री के कार्य को पर्यवेक्षण अधिकारी उसे हटा सकेंगे एवं उन्हें प्रतिस्थापित करवाएंगे, अस्वीकृत कर हटाए गए कार्य या सामग्री का मूल्य या उसके प्रतिस्थापन की लागत, जैसा उचित समझा जाए, निविदा देने वाले पक्ष को देय राशि से काट लिया जाएगा ।
4. मुख्य नगरपालिका अधिकारी/यंत्री हस्ताक्षरित कार्य से संबंधित डिजाइन्स, ड्राइंग्स एवं लिखित अनुदेश उसके कार्यालय में, कार्यालय समय में निरीक्षण हेतु रखेगा और उसके अनुरूप कड़ाई के साथ कार्य किया जाएगा ।
5. अध्यक्ष/मुख्य नगरपालिका अधिकारी/यंत्री को मूल नक्शों या अनुदेशों में ऐसे परिवर्तन करने की शक्ति होगी, जो कार्य की प्रगति की दृष्टि से आवश्यक हों और ये परिवर्तन उन्हीं शर्तों पर पूरे किए जाएँगे, जो मुख्य कार्य के लिए स्वीकृत की गई हों एवं

उस समयावधि में पूरा किया जाएगा, जो महापौर/मुख्य नगरपालिका अधिकारी/यंत्री/यंत्री परिवर्तन का उल्लेख करते हुए लिखित में आदेश करेंगे । ऐसे परिवर्तनों से आवश्यक हुआ अतिरिक्त कार्य के लिए, यदि कोई हो, निम्न रूप से भुगतान किया जाएगा-

(क) पूर्व सहमत्य दर से यदि यह उसी समान प्रकृति का हो, जैसा अनुबंध में उल्लिखित है;

(ख) कार्य भिन्न प्रकृति का है, ऐसे कार्य की दर पूर्व में सहमत्य न हो तो दरों की अनुसूची में उल्लिखित दरों पर जो लागू योग्य हो;

(ग) यदि अतिरिक्त मदें नगरपालिका को लागू योग्य दरों की अनुसूची में सम्मिलित नहीं हैं, विद्यमान बाजार दर से श्रमिक और सामग्री के मूल्य का विश्लेषण कर दरें स्वीकृत कर जो सक्षम प्राधिकारी द्वारा उपयुक्त मानी जाएं । ऐसा परिवर्तन ठेके को अमान्य नहीं करेगा, वरन् मूल ठेका कार्य को पूरा करने का समय अनुपात में विस्तारित किया जाएगा ।

6. अध्यक्ष/मुख्य नगरपालिका अधिकारी/यंत्री को प्रतीत होता हो कि कोई भी कार्य विकृत, अपूर्ण या कुशल कारीगरी से या हीन प्रकार की सामग्री के साथ निष्पादित किया गया है तो लिखित में माँग पर ठेकेदार उसमें तुरन्त सुधार करेगा, हटाएगा या उसका पूर्णतः या अंशतः जैसा भी प्रकरण में आवश्यक हो, बिना किसी अतिरिक्त प्रभार के पुनर्निर्माण करेगा और उसके द्वारा अध्यक्ष/मुख्य नगरपालिका अधिकारी/यंत्री द्वारा निर्धारित अवधि में पूरा करने से इनकार करने पर जैसा भी प्रकरण हो, या विकृत अथवा हीन गुणवत्ता की सामग्रियों या वस्तुओं को निर्धारित समय में कार्यस्थल से हटाने और ठेके की शर्तों के अनुसरण में महापौर/आयुक्त/यंत्री द्वारा लिखित में माँग पर उन निष्प्रयोज्य सामग्रियों या वस्तुओं के बदले उपयुक्त सामग्रियों या वस्तुएँ शीघ्र उपलब्ध कराने में विफलता के कारण में प्राक्कलन की राशि पर एक प्रतिशत की दर से 10 दिनों से अनधिक प्रतिदिन के लिए क्षति का भुगतान करेगा ।

7. स्वीकृति प्राधिकारी के विचार में यदि कार्य विशिष्टियों के अनुसार कड़ाई के साथ अनुसरण में निष्पादित नहीं किया गया है तो उन्हें शक्ति होगी कि उस कार्य का भुगतान ऐसी घटी दरों से करें, जो वे निर्धारित करें, किन्तु यह प्रक्रिया उनके पक्ष में वैकल्पिक होगी ।

8. ठेकेदार द्वारा नीचे दी गई समयावधि में कार्य पूर्ण नहीं किए जाने के प्रकरण में ठेकेदार के देयक से किए गए कार्य के मूल्य के दस प्रतिशत की कटौती की जाएगी ।

उपरोक्त संदर्भित सूची

कार्य का नाम	मद का क्रमांक	श्रेणी एवं कार्य का विवरण	निष्पादित किए जाने वाले कार्य की मात्रा	गणना की इकाई	भुगतान की दर	पूर्णता की दिनांक
(1)	(2)	(3)	(4)	(5)	(6)	(7)